

INTRODUCTION TO ENGLISH LEGAL SYSTEM

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General

Introduction

General

Introduction

Sometimes it seems as though we can't do anything in today's world without consulting attorney. Over the past few decades, the law has crept and clawed its way further into our daily lives. Law in one form or another, permeates modern society, including the business environment, which is subject to numerous laws and regulations at all levels of government- local, state, federal and in limited circumstances, international.

Consequently, today's business persons benefit themselves and their organizations by developing a basic, working knowledge of the law.

= What is Law?

Many legal scholars have tried to answer the essential, but difficult question, "what is law?"

Oliver Wendell Holmes, stated in his 1881 book "The Common Law US Supreme Court Justice", that: The Law embodies the story of a nation's development through many centuries, and it cannot be dealt with as if it contained only the axioms and corollaries of a book of mathematics.

Accordingly, because the law is not math, a precise definition may be unattainable.

According to A Dictionary of Basic Legal Terms, law is “the regime that orders human activities and relations through systematic application of the force of politically organized society, or through social pressure, backed by force, in such a society.” This definition of the law, while true, is too abstract and long for our needs. We should therefore think of the law in more basic terms as rules that govern and guide actions and relations among and between persons, organizations, and governments. This is the short and easily understandable definition that we will use.

= Functions of Law

The law serves many purposes and functions in society. Four principal purposes and functions are establishing standards, maintaining order, resolving disputes, and protecting liberties and rights.

1- Establishing Standards.

The law is a guidepost for minimally acceptable behavior in society. Some activities, for instance, are crimes because society (through a legislative body) has determined that it

will not tolerate certain behaviors that injure or damage persons or their property.

For example, under a typical state law, it is a crime to cause physical injury to another person without justification—doing so generally constitutes the crime of assault.

2- Maintaining Order.

This is an offshoot of establishing standards. Some semblance of order is necessary in a civil society and is therefore reflected in the law. The law—when enforced—provides order consistent with society's guidelines.

3- Resolving Disputes.

Disputes are unavoidable in a society made of persons with different needs, wants, values, and views.

The law provides a formal means for resolving disputes—the court system.

4- Protecting Liberties and Rights.

The constitutions and statutes of the States provide for various liberties and rights.

A purpose and function of the law is to protect these various liberties and rights from violations or unreasonable intrusions by persons, organizations, or government. For example, someone who believes that his free speech rights

have been prohibited by the government may pursue a remedy by bringing a case in the courts.

Anyway we have probably realized that laws may serve more than one principal function and there are obviously more principal functions than the four that we have identified.

= Importance of study:

This book is an ambitious and successful attempt to have a bird's-eye and panoramic view of various legal traditions mainly from a comparative and historical standpoint.

This book contains gems of information regarding the origins, historical developments, the peculiar characteristics and the linkages with as well as the interactions and tensions within and among the major legal traditions.

This book gets extra points for including an analysis of legal traditions. In my experience, it's hard to find information on that subject. I highly recommend Great Legal Traditions to historians, sociologist, political scientists, lawyers, law students--and anyone who is interested in the evolution of the law throughout the ages.

= Plan of study:

The plan of study will stand on several chapters, where we will begin the study by preliminary chapter deals with studying the divisions of legal traditions in the world, passing through the statement of some similarities and differences between the traditions of legal, both at the level of substantive law or at the level of procedural law.

Then go out of interest to the study of the English legal system through two chapters, we address in the first one the legal framework of E.L.S, and then study the sources of English law and in the second chapter study the political system in British.

Vocabulary of (Introduction)

A

Attorney

محامي

A bird's-eye

بعين ثاقبة

A comparative an historical
standpoint

من وجهة نظر تاريخية مقارنة
Accordingly

لذلك

Analysis

تحليل

Axioms

البديهيات

B

Benefit

C

Centuries

قرون

Clawed

مخالب

Consequently

بناءً عليه

Corollaries

البديهيات

Crept

تسلل إلى

Crimes

الجرائم

D

Differences

اختلافات

Divisions

تقسيمات

E

Embodies

تجسد

Establishing Standards

	المؤرخون
وضع المعايير	
Evolution	I
تطور	In my experience
Extra points	من خلال التجربة الشخصية
معلومات أو نقاط إضافية	Injure
G	يجرح
Gems of information	Interactions
معلومات نفيسة أو قيمة	معاملات أو تفاعلات
Gets	L
يحصل على	Law students
Govern	طلاب القانون
يحكم	Lawyers
Governments	المحامون
حكومات	Legal framework
Guide actions	الإطار القانوني
توجيه الإجراءات أو الأحداث	Legal scholars
Guidepost	علماء القانون
المنارة	Legal traditions
H	التقاليد القانونية
Historians	Legislative body

	الهيئة التشريعية
Linkages	
	الروابط
O	
Organizations	
	المنظمات
P	
Panoramic view	
	مشهد بانورامي
Past few decades	
	العقود القليلة الماضية
Permeates	
	يتخلل
Plan of study	
	خطة الدراسة
Political scientists	
	علماء السياسة
Procedural law	
	القانون الإجرائي

S	
Several chapters	
	فصول عدة
Similarities	
	المتشابهات
Social pressure	
	الضغط الشعبي
Sociologist	
	الإجتماعي
Sources of English law	
	مصادر القانون الإنجليزي
Subject	
	موضوع
Substantive law	
	القانون الموضوعي
Supreme Court Justice	
	محكمة العدل العليا
Systematic application	
	تطبيق منهجي



Tensions

The regime

Tolerate

التوترات

النظام

Too abstract



Unattainable

تحمل

مجردة جداً

متعذر أو متعسر

Preliminary Chapter
Legal Traditions of
the World

Preliminary Chapter

Legal Traditions of the World

There are certain general categories of legal tradition that differentiate legal systems by country or time. These legal traditions are shared by a certain group or whole systems and make it possible to identify different legal families.

In other words, from understanding the legal tradition in which each legal system is affiliated it is possible to speak of different legal families. However, even though a national legal system can belong to an identified legal family, simultaneously, at the local or communitary jurisdiction, a diverse legal system belonging to a different legal tradition can exist.

Indeed, it is difficult to point to one country that has a pure legal tradition without influence from other systems. For historical reasons, as well as political and economic influences, the legal systems of countries are often an amalgamation of

various legal systems, incorporating elements of different legal traditions ⁽¹⁾.

Section 1

Classifications of Legal Traditions

Introduction:

The concept of law is different in different nations. The legal system in use in any country is founded on culture, religious beliefs, and political structures. There are various legal systems around the world.

It is difficult to find a country that has a pure legal system. Around the world, legal systems are influenced by political and economic factors, creating a combination of various legal systems. These systems combine elements of the various legal systems.

(1) - Canada is an example of this situation: its national system belongs to the common law tradition, while the legal system in the province of Québec belongs to the Civil Law tradition. Another example can be found among the different Latin American countries with indigenous populations, whose national systems belong to the Civil Law family and, simultaneously, in more reduced territorial jurisdictions, the so called indigenous consuetudinary law is applied; including with respect to electoral matters.

Legal issues are becoming international as a result of globalization. This is the reason why it is important for all leaders to understand all the legal systems around the world.

The main legal traditions include:

- The common law tradition.
- The civil law tradition.
- The religious law tradition.
- The socialist law tradition.

Subsection 1: The common law tradition

Common law is the law that is established by judges through court decisions and comparable tribunals. This is the legal tradition upon which the legal system of the United States and Great Britain are based. Most of other Commonwealth and former Commonwealth nations use common law tradition.

Common law tradition emanated from the European feudal period, which was inherited from Great Britain in its colonial era.

Whatever is considered incorrect by a society can be considered as illegal without it necessarily having been documented as illegal. This is because the system is based on customs. Custom makes models which then become policies.

The other aspect, equity, mirrors the common law tradition in a sense of fairness in those incorrect decisions cannot be made so that customs can be protected.

Common law system gives great precedence to common law based on the common belief that it is not fair to handle common facts in a different way on different occasions.

If the court finds out that the current case is fundamentally different from all previous cases, a situation refers to as a matter of first impression; judges have the power to establish law by making precedent. Therefore the new decision that has been made precedent is capable of binding future court cases.

The body of precedence is the one that is referred to as the common law, and it is the one that binds future decisions. The main source of law under this system is the decisions of the judges that are considered precedent.

Subsection2: The civil law (2) tradition:

The civil law tradition originated from the legal system of Ancient Rome, It is the system upon which the legal systems of

(2)- The term "civil law" referring to a legal system should not be confused with "civil law" as a group of legal subjects distinct from criminal or public law.

the rest of Europe are based. The laws in this system are coded written down statutes.

The source of law according to this tradition is written down or coded statutes. The basic principle of this legal system is codification.

The codes are established in general abstract principles which direct the exercise of legal judgment. Any time a new code is ratified, it annuls those that precede it. The incoming does not gain legality due to the fact that it is similar in any way to those that came before it. It gains legitimacy after being integrated and assimilated into the most recent code. It exists on encoded convention.

The foundation of this system is to provide every person with accessible and codified collection of statutes applying to them, and which all the judges must base their decisions on concerning any case. The role of the judges under this system is to apply the written laws into specific cases.

Basically, the civil law system follows from abstractions, formulation of common principles and distinguishing substantive regulations from procedural regulations.

The primary source of law in the civil law tradition is a compendium of laws, organized by subject matter and in some pre-arranged order.

Subsection3: Religious legal tradition:

In a religious law tradition, a religious document is used as a source of a legal system. The methodology used in deriving the legal system from religious documents varies from religion to the other. Religious legal system is based on religious beliefs.

The source of law according to this system is the religious documents.

Law, from the religious perspective also encompasses ethics and morality that are necessary to being Godly.

Halakha is one example of religious law observed by the Jewish. There is also the Hindu law, Sharia that is observed by Muslims and the Cannon law which applies to the Christians.

Sharia and Cannon laws are codified just like the civil law tradition while Sharia uses precedent just like the common law.

Subsection4; Socialist legal tradition (3):

Socialist legal system is the system of law employed in communist countries. This system is founded on the civil law tradition, with key variations and additional concepts from the Marxist-Leninist ideologies.

The key amendment is the provision for most assets to be possessed by the government or by co-operatives. It also advocates for presence of special courts and statutes for government ventures.

The socialist law was common in the communist nations before the end of the cold war. Currently, even the countries where it is applied are slowly turning to civil law system.

The socialist law, just like the civil law system has a civil code and courts that applies this code. The approach to law under this system is the same as that of the civil law tradition.

(3) - It is difficult to find online sources that refer specifically to a socialist legal tradition. Instead, read about the laws of countries currently identified as approximating a socialist tradition. For example, the Glob Alex article on Chinese law includes helpful information on the sources of contemporary Chinese law and directs the reader to important online sources for additional information.

Vocabulary of

(Preliminary ch.- s. 1)

A

Abstractions

تجريدات

Accessible

يمكن الوصول

Additional concepts

مفاهيم إضافية

Advocates

دُعاة

Amalgamation

دمج

Ancient Rome

روما القديمة

Annul

يلغي

Apply

تطبيق

Approach

مقارنة

Assets

الأصول

Assimilated

استيعابهم

B

Basically

في الأساس

C

Cannon law

القانون الكنسي

Civil law tradition

تقليد القانون المدني

Classifications of Legal Traditions

تصنيفات التقاليد القانونية

Coded written down statutes

تم تقنينها كتابة وفقاً للقوانين

Codification

تدوين

Cold war

الحرب الباردة

Colonial era

الحقبة الاستعمارية

Comminatory jurisdiction

الاختصاص القضائي

Common law tradition

تقليد القانون العام

Communist countries

الدول الشيوعية

Comparable tribunals

المحاكم المماثلة

Compendium of laws

ملخص واف للقوانين

Concept

مفهوم

Contemporary Chinese law

القانون الصيني المعاصر

Co-operatives

التعاونيات

Court cases

قضايا المحاكم

Court decisions

قرارات أو أحكام المحاكم

Creating

خلق أو إنشاء

Customs

الأعراف

D

Distinguishing

المميزة

Diverse legal system

النظام القانوني المتنوع

Documented as

موثقة

E

Electoral matter

المسائل الانتخابية

Emanated

انبثقت من

Encoded convention

ترميز

Encompasses

تشمل

Equity

العدالة

Ethics

أخلاق

European feudal period

فترة الإقطاعية الأوروبية

F

Follow

يتبع

Former Commonwealth nations

دول الكومنولث السابقة

Formulation of common principles

صياغة المبادئ العامة

G

General abstract principles

مبادئ عامة مجردة

Globalization

العولمة

Godly

إلهي

Government ventures

مشاريع أو مشروعات حكومية

H

Halakha

الشرع

Hindu law

القانون الهندوسي

Historical reasons

لأسباب تاريخية

I

Indigenous populations

السكان الأصليون

Illegal

غير شرعي

Impression

انطباع

Incoming

الوارد

Incorporating elements

	تتضمن عناصر
Incorrect decisions	أحكام أو قرارات غير صحيحة
Indigenous consuetudinary law	قانون التوحيد الأصلي
Inherited from	موروث من
Instead	في حين أن
Integrated	متكامل
Is affiliated	ينتمي
Is founded on	يوجد على
	
Jewish	يهودي
Judges	القضاة
	

Key amendment	تعديل جوهري
Key variations	الاختلافات الرئيسية
	
Leaders	قادة
Legal families	الأسر القانونية
Legal issues	قضايا قانونية
Legal judgment	حكم قضائي
Legal tradition	التقاليد القانونية
Legality	شرعية
Legitimacy	شرعية
	

Marxist-Leninist ideologies

الإيدولوجيات الماركسية اللينينية

Methodology

منهجية

Morality

أخلاقية

N

Not fair to handle

ليس من العدل التعامل معها

O

Other aspect

الجانب الآخر

P

Policies

سياسات

Political and economic influences

التأثيرات السياسية والاقتصادية

Political structures

هياكل سياسية

Possessed by

تمتلكها

Pre-arranged order

مرتبة ترتيباً مسبقاً

Precedence

الأسبقية أو الأولوية

Precedent

سابقة

Primary source

مصدر أولي

Procedural regulations

اللوائح الإجرائية

Provision

تقديم أو تنصيص

Pure legal tradition

تقليد قانوني نقي أو خالص

R

Ratified

تصديق

Religion

دين

Religious beliefs

معتقدات دينية

Religious document

وثيقة دينية

Religious law tradition

التقاليد الدينية

S

Sense of fairness

الشعور بالإنصاف

Sharia

الشريعة

Simultaneously

في الوقت ذاته

Socialist law tradition

تقليد القانون
الإشتراكي

Specific cases

حالات محددة

Substantive regulations

اللوائح الموضوعية

T

Territorial jurisdictions

الولايات القضائية الإقليمية

W

Whatever

أياً كان

Written laws

القوانين المكتوبة

Section 2

Similarities and differences between

The four legal traditions

Sub-section 1: Similarities and differences in substantive law in each of the four traditions.

Substantive law in relation to criminal justice describes what comprises a criminal act.

The four legal traditions have definitions of what constitutes an illegal act. Many criminal activities cut across the four legal traditions.

The difference is in the basis of description according to each legal tradition. The common law basis for this description is custom. The civil law as well as the socialist law bases their description on the written code. The religious law bases its description on religious documents and doctrines.

Sub-section 2: Similarities and differences in procedural law in each of the four traditions.

The procedural law deals with the way that the substantive law is implemented. The four legal traditions have their own ways of implementing the substantive law.

The difference is in the ways that this is carried out.

- In the common law tradition, the element of stare decisis links the process to the fundamental precept of custom. Judges are supposed to reach their decisions based on the way similar decisions were reached previously. To strike a balance between custom and equity, the common law system follows the theory of particularization in procedural law ⁽¹⁾.

- Under the civil law tradition, judges glean through from the law the most suitable decision through rational reasoning. If this is not possible, theoretically, it is usually the judge's fault for not understanding the statutes correctly or the legislature for not providing the judge with adequate code. In a matter of fact, the judge under the civil law tradition cannot get an exact code that is capable of addressing the specific facts of the matter at hand. This is expected because the legislature cannot be expected to predict every possible situation. The intention of the civil

(1) - Particularization allows judges to be flexible in separating a particular case from the previous cases that were similar to it. In this way, they are allowed freedom to decide a case based on fairness instead of strictly based on custom. This allows a judge to avoid reaching an unjust decision in an effort to preserve customs.

law tradition is to deny the judge any opportunity to make law .

What happens in reality is that the judge gets the most applicable code and then shows in writing how he rationally got to the facts of a specific case from that code and then reached to a decision.

- **The socialist law**, being derived from the civil law, is implemented in the same way as the civil law is.

- **Religious law is divine law**. It is implemented by religious leaders.

The Sharia law for example, is implemented on the basis of the Quran and Sunnah. The verdicts are made by the Ulema who are the jurists. They use consensus, analogical assumptions, investigation and general practice to obtain legal opinions.

The cannon law is observed as natural law, but motivated by the word of God. It is implemented by the legislative power of the church. These include bishops, pope and the British Parliament for the Church of England. Their decisions are based on the dictates of the bible and other written statutes that govern the church.

Vocabulary of
(Preliminary ch.- s. ٢)

Constitutions

الدساتير

A

Addressing the specific facts

معالجة الحقائق المحددة

Adequate code

التقنين المناسب

Analogical assumptions

افتراضات نظرية

Applicable code

تقنين مستخدم

B

Bible

الكتاب المقدس

Bishops

الأساقفة

British Parliament

البرلمان البريطاني

C

Consensus

الإجماع

Criminal justice

العدالة الجنائية

Cut across

تتقاطع

D

Deny

أنكر

Dictates

يُمليه

Doctrines

مذاهب

F

Fairness

عدل

Fault for

خطأ

Fundamental precept

مبدأ أساس

G

Glean

جمع

I

Illegal act

قانون غير شرعي أو
عمل غير قانوني

Implemented

نُفذت

In a matter of fact

في واقع الأمر

Investigation

تحقيق أو بحث

J

Jurists

الفقهاء

L

Legislative power of the

Church

السلطة التشريعية للكنيسة

Legislature

السلطة التشريعية أو المشرع

N

Natural law

القانون الطبيعي

O

Opportunity

فرصة

P

Particularization in procedural
law

التخصيص في القانون الإجرائي

Pope

بابا الفاتيكان

Previously

سابقاً

R

Rational reasoning

المنطق العقلائي

Rationally

بعقلانية

Reality

في الواقع

S

Stare decisis

Strictly based on

يقوم على أساس صارم



Theoretically

نظرياً



Ulema

العلماء

Unjust decision

قرار أو حكم غير عادل



Verdicts

الأحكام

Chapter one

Common law system

(English legal system)

Chapter one

Common law system

(English legal system)

Introduction

The Common law is the tradition of law that prevails in England and in countries colonized by England. The name is derived from the medieval theory that the law administered by the king's courts represented the common custom of the realm, as opposed to the custom of local jurisdiction that was applied in local or manorial courts. In its early development common law was largely a product of three English courts-King's Bench, Exchequer, and the Court of Common Pleas-which competed successfully against other courts for jurisdiction and developed a distinctive body of doctrine.

The term common law is also used to mean the precedent-based element in the law of any common-law jurisdiction, as opposed to its statutory law or legislation, and also to signify that part of the legal system that did not develop out of equity, maritime law, or other special branches of practice.

All Canada except Quebec and all of the United States except Louisiana follow common law. U.S. statutes usually provide that the common law, equity, and statutes in effect in England in 1603, the first year of the reign of James I, shall be deemed part of the law of the jurisdiction. Later decisions of English courts have only persuasive authority.

Section 1
Legal framework Of
English legal system

Subsection 1: Comparison between common and civil law

On looking at the historical development and substantive features of the legal systems of the world we can see that many of them fall into one of two families.

In the whole of human history only two peoples seem to have founded a secular, comprehensive, enduring, and widespread legal system: the Romans of the Ancient World and the Anglo-Normans of the middle Ages. The pedigree of the civil law goes back to Ancient Rome, although the later customary family law and the canon law of procedure have also marked the system. The Common Law world begins in England. Of course within each family there are major differences between individual members, but each is still quite clearly not a member of the other family.

The best way to explain the main elements of the Common and the Civil Law families and to compare and contrast the two is to look at the following features.

(1) Beginnings

The Common Law was conceived in 1066 and born of a union between older Saxon law and the custom of the Norman conquerors. The Civil Law was older than the Common Law is now.

(2) Nurture

The Common Law was nurtured in London law courts, by judges and barristers. The older Roman law was developed - to an important extent - by jurists, who were not practicing lawyers but public-minded citizens. It was they who strove to expound, explain and adapt the ancient and sporadic legislation and the edicts of the officials.

(3) Spread

The Common Law spread only by conquest and colonization: no one ever accepted it freely (and the countries of the former Soviet bloc are taking their models from the civil law, not the common law).

The Roman part of the Civil Law, preserved in Justinian's collection of 529AD, was rediscovered in the 11th century, embraced by the University law schools of northern Italy and spread from them throughout continental Europe. From

there, and like the common law, it went to the New World and to parts of Africa by colonization.

But, especially in the 19th century, the French and then the German versions were selected as models by countries in the Middle and Far East.

(4) Language

Although originally written in Latin and spoken in Norman French, the language of the Common Law today is virtually only English. Wherever some versions of the common law is in force, the native or official language of the country is English. The legal vocabulary, however, is likely to be markedly technical if not arcane and to contain much dead French and Latin. By contrast, the Civil Law is found in most languages.

(5) Makers

The main creators of the Common Law are the judiciary: that is to say the matrix, the basic operating system is laid down by case law. Recruited from the ranks of successful practicing lawyers, the judges speak with individual and distinctive voices: they lay down the law. The great names are well known in common-law countries, and in the USA

and Canada the highest court is an institution of enormous power and prestige.

In civil-law systems, at least until very recently, judges played the comparatively minor role of settling the dispute in front of them. They did not make the rules of the system, and their decisions are not cited in later cases. Appointed to the Bench in their middle to late twenties, they are civil servants who, in principle, rarely sit alone but in groups of three. They are trained to produce just one decision - that of 'the court' - written in the dry laconic prose of a bureaucrat.

(6) Legislation

Of course the modern countries of both systems produce large amounts of legislation. But that of the common-law countries tends to be piecemeal. Save for the constitution, and fiscal matters, basic principles are not enacted (except as codifications of existing case law in such statutes as the Partnership Act). The typical statute merely adjusts some details of the rules laid down by the courts. In complete contrast, modern civil law systems tend to think of themselves as 'codified'. The word 'code' in this context means that a whole area of law is laid down in one legislative document which aims to provide a closed,

coherent and consistent set of propositions which, if used in good faith, can be applied to solve any dispute in that area.

The most obvious example is that of a criminal code. Historically, however, the most influential models have been the civil codes of France (1804) and Germany (1900). These deal with non-criminal private law, that is the rules on persons and family, property, wills and intestacy, contracts, torts and so on. Such codes also provide the general pattern of thought in the whole legal culture, acting as a default system for gaps elsewhere (for instance in the laws regulating employment or the environment).

(7) Precedent

Where the basic principles are contained in an enacted code, this is the source of the law; judicial decisions do not make law because they do not need to. So, for instance, the Austrian Civil Code 1811 - which lays down the basic rules of private law - can sensibly provide: 'Decisions in individual cases and the opinions handed down by courts in particular lawsuits never have the force of law; they cannot be extended to other cases or to other persons. This approach is fortified by the historical fact that civil-law judges did not see their job as creating law, the professional fact that they

are career civil servants, and the political fact that it is thought more democratic to entrust law making to the elected representatives of the people. Common-law perceptions are quite different. Historically, the judges made the law. Furthermore, to this day the legislator in common law countries does not lay down the basic rules of the legal system. But they are needed, and so a notion of precedent comes into being. For instance, the English parliament has never defined murder, never laid down that you must keep your contracts, or pay compensation for damage unlawfully caused to others. Since such definitions and rules are necessary, courts and lawyers can find them only in earlier case law. And since it would be absurd and unfair if judges could re-make the basic law of murder or of contract in any case before them, a rule of 'precedent' binds them to the law as declared by higher courts in their jurisdiction. This means that, in deciding a legal issue, the common-law judge must come to terms openly and honestly with any rule laid down by precedent, just as a civil-law court has to face up to the rules laid down by the legislator. The doctrine of precedent is an operating rule of a common-law system: so the rule itself was never laid down by a legislator. It is a judicial

creation and can be amended or adapted by its makers. So in England, for instance, the highest court (the House of Lords) held in the 19th century that it was bound by the law laid down in its own prior decisions. In the 1960s it amended that rule and gave notice that it was now free, to change its mind. Lower courts, however, are bound by the highest court's rulings on matters of law.

(8) Fact

Legal disputes are as much about fact as about law. The work of the lower courts, in particular, is very largely taken up with determining issues of fact. The common law and the modern civil law both developed in territories where such matters were decided by ordeal, oath or battle. On discarding these methods, the two systems took different paths. The judges who built up the common law system were few in number, and left the hard work of fact-finding to non-lawyers: the jury, originally of neighbors who might be thought to know the background, and then of disinterested strangers empanelled to hear the evidence and decide. Nowadays only the USA makes much use of the jury for non-criminal matters (as required by the VII Amendment), but its ghost rules the procedure of all common-law

countries. The very word 'trial' suggests a single, continuous and relatively short session in which all the evidence is presented to a jury who knew nothing about it beforehand. Similarly, there is no need for the judge to be acquainted with the case before the trial begins. The proceedings are oral, since that is the quickest and most effective way of conveying information to a number of laypersons. And their verdict is difficult to overturn, since an appellate court has not heard the evidence directly nor seen the witnesses in person. The civil law systems, by contrast, have always left the task of finding the facts to a professional judge. This has a number of consequences;

First, there were always far more judges in civil- than in common-law countries.

Second, the judge could be given more control from the outset of the dispute in deciding which witnesses to call and what questions to put to them.

Third, the procedure could be more sporadic, spread over a number of sessions, and reduced to writing: the civil-law word often mistranslated as 'trial' is *le procès*, *der Prozess* - a better rendering is 'the proceedings'.

Fourth, the rules of evidence can be flexible, since a professional judge is presumed capable of accurately assessing testimony.

Finally it is easier for a higher court to correct or revise a decision.

(9) Structure

One result of the above features is that in common-law countries the legal system is not organized in a coherent and clear structure. Its development tends to be incremental and it is not easy for the foreign lawyer to approach. Civil lawyers, on the other hand, lay great emphasis on system and structure. Furthermore, they tend to follow similar patterns in their organization of legal topics, and once these are understood it is relatively simple to locate the law on any given topic.

(10) Incidence

Some versions of the common-law are found today only in places once occupied by the British, among them Ireland, the USA, Canada, Australia, New Zealand, India, Pakistan, Kenya, Uganda, Zambia, Nigeria and Ghana. But (except for the special case of Israel) no country which has the common law seems able or willing to get rid of it.

Subsection2: General characteristics of English legal system

(1) - Continuity

It is noted that the law in almost European countries is separated from a revolution or declaration of independence, or rationing, but the law of England, the cradle of Anglo-Saxon law, has a continuing history, it dates back to the 6th century AD, and the English law of this privacy is unique Its kind, old rules cannot lose its strength over the years, so much so that a case had been adjudicated in 1946 on the basis of a law promulgated in 1381.

(2) - Non-regulation:

English law and regulations followed by a non-codified law, while the laws of the European continent have their known regulations, this statement should not be taken on the launch, noting that some French laws are codified, such as administrative law, while some subjects of English law such as the law of theft, but the predominant nature of English law, a law not codified in legal codes containing its general principles.

(3) - Judicial nature:

English law is still based on case law as a basic and formal source of its principles and theories. The English judiciary has assisted in the performance of this structural role as follows:

A) - The delay of legislation as a primary source of law English until the nineteenth century, before that had to fill the judiciary this shortcoming, Even when legislation has become an essential source of legal norms, it is often the case Partial legislation, which does not include general principles, which has led to the survival of the role Structural of the English judiciary.

B) - No legalization of English law: because codification usually focuses on partial rules, universal principles, and completion of codification the structural role of the judiciary to a large extent.

C) - Introduction of the case law system. The introduction of a binding case law, the English judiciary became an official source of the legal rules; the lower courts abide by the provisions of the courts higher than the degree, as the

Supreme Courts shall abide by what they have already ruled in similar cases.

(4) - The predominance of procedural nature

Among the important features of medieval canon the predominance of the procedural nature of its rules and the assertion that it is judicial measure that creates right, not vice versa, so the general canon starts from the procedure to reach the right.

So claims in the Royal Courts began with one or more, if the plaintiff fails to find an acceptable formula for his claim that is the case means the loss of his right.

(5) - Not affected by Roman law

The prevailing view of jurisprudence was that English law was not influenced by Roman law, unlike most European laws

However, we support the view that the Anglo-Saxon legal system did not detract from the influence of Roman law, as some Roman legal principles leaked to English law as it developed.

The ways in which Roman law leaked to England are as follows:

A) - The breadth of the jurisdiction of the ecclesiastical court, which is applied by ecclesiastical courts in England, with many principles of Roman law, the rules applied by the Council of the Court were to some extent influenced by Roman law.

B) - The spread of the jurisprudence of the Roman in England through the renaissance of the scientific Polish, which was shared by English jurists.

C) - Borrowing the judiciary and English jurisprudence a lot of Romanian legal rules under the guise of the interpretation of English law.

D) - The important role played by the King's advisor in building the rules of the law of justice on the basis of the principles of modern Roman law in addition to the English common law, which was similar in many respects to the old Roman law most often.

(6) - The unified judiciary

States that adopt the Anglo-Saxon legal system have a unified judicial system, and there is no such system a specialized judiciary in administrative disputes in addition to the ordinary one, on the basis that the ordinary judiciary in terms of composition and terms of reference creates greater security for individuals, since there is no authority to administer it, which is subject only to the rule of law.

Subsection3: Classification of law in English legal system

Another way of classifying and understanding the law is to consider what subject-matters it deals with.

Lawyers often divide the law and the legal system into:

(A) Criminal law and civil law

- **Criminal Law**

One category is the criminal law - the law dealing with crimes. Cases are called prosecutions. The case is instituted by the prosecutor - normally now a representative of the Crown Prosecution Service, who takes over the case from

the police who have already charged the defendant (or accused) with, specified crimes.

A criminal wrong is seen as a public wrong - a wrong against the community as a whole and indeed the state. So, cases are brought in the name of the monarch (the Head of State). To be prosecuted for a crime is a serious matter, so the case must be proven by the prosecutor to a high standard - beyond reasonable doubt - which means almost certainty. Since the case is handled by a public agency on behalf of the Crown, it follows that the victim of the crime is a relatively peripheral figure in the process and has little control over it, though some steps are now being taken to have more regard for victims' rights.

- **Civil Law**

The civil law is much more wide-ranging, though it produces fewer cases in court because most are settled before they reach court. The civil law includes, for example:

- The law of contract (buying a bus ticket or an Oasis CD involves entering into a contract). Much of commercial law

falls into this area, and it includes many specialized areas - banking, bankruptcy, insurance, shipping and so on.

- The law of torts. Torts are civil wrongs - forms of unacceptable behavior actionable in court, including trespass to land or defamatory statements.

- Family law deals with issues to do with marriage and children

- The law of property - this concerns the ownership of land and personal property and transactions relating to them. More specialized areas include the creation and protection of intellectual property and the establishment of trusts (property held on behalf of others) and the distribution of property of deceased persons.

Civil cases are brought by plaintiffs, who are usually private individuals or companies but may also by government departments. If the case is proven (on the balance of probabilities- meaning that one is more sure than not), the defendant normally compensates the plaintiff by the payment of damages (money). Sometimes, the plaintiff may be able to obtain a court order to stop the defendant from committing further intrusions or attacks - this is called an injunction.

- **Differences between civil law and criminal law:**

Civil law and criminal law are different in several ways:

1 - The purposes and rationales are different. As already seen, criminal law imposes duties to the state observe the peace and to respect others. The civil law involves duties but also often confers powers and rights; it is also more focused on relations between private individuals.

2 - There are different processes for handling civil and criminal cases. The procedure is different. And, as already mentioned, the burden of proof is different.

3 - The outcomes are different. Civil law usually seeks to achieve compensation (money) for the person who suffered the wrong; sometimes, there is no money paid but an order to put the parties back into their rightful positions. Criminal law is about punishments - fining or imprisoning - and this is decided by the state rather than the victim.

(B) Private law and Public law

The foregoing examples of civil law can be classed as private law - essentially dealing with relations between private individuals.

But other examples of civil law deal with public authorities and so can be classified as public law. These include:

- Constitutional law, this sets out the nature of the government and its institutions. It also deals with the rights and duties of citizens as against the government
- Administrative law, this deals with processes of decision-making, appeals and inquiries.

Many of the cases in these areas are brought by a process known as judicial review. The government is the "respondent" in such cases and the individual complainant is the "applicant".

Certain activities can be both crimes and civil wrongs. If you punch someone else on the nose and cause it to bleed; you could be prosecuted for a crime of assault and you could be ordered to pay damages for the injury caused.

A good example is the case of OJ Simpson - Simpson was prosecuted for murder. He was acquitted but has since been ordered to pay millions of dollars' worth of damages following a civil trial to the relatives of his ex-wife.

Vocabulary of
(Chapter 1 – section 1)

A

Abide by

الالتزام بها

Absurd

سخيف

Accused

المتهم

Acquainted

تم الإطلاع عليه

Acquitted

برأت

Adapt

تكيف مع

Adapted

تكيف

Adjudicated

الفصل فيها

Administrative law

القانون الإداري

Adopt

تبني

Always far

بعيد دائماً

Amended

مُعدل

Appellate court

محكمة الاستئناف

Applicant

متقدم لوظيفة

Arcane

غامضة

Assertion

توكيد

Assessing testimony

تقييم الشهادة

Attacks

هجمات

B

Banking

الخدمات المصرفية

Bankruptcy

الإفلاس

Barristers	المحامون	السابقة القضائية	Certainty
Battle	معركة	السياقات	Civil servants
Beginnings	البدايات	الموظفون المدنيون	Claims
Bench	مقعد	مطالبات أو دعاوى	Code
Borrowing	اقتراض	التقنين	Coherent and clear structure
Breadth	سعة	هيكل متماسك وواضح	Coherent and consistent set of propositions
Burden of proof	صعب الإثبات	مجموعة من المقترحات المتماسكة والمتسقة مع بعضها	Colonization
Bureaucrat	الدواوين	الاستعمار	Commercial law
By contrast	على النقيض	القانون التجاري	Compensation
		تعويضات	Competed successfully
Career	مهنة	تنافس بنجاح	
Case law			

Completion of codification إتمام التقنين أو التدوين	Contracts انكماش
Comprehensive شامل	Conveying نقل
Conceived متخيل	Council of the Court مجلس المحكمة
Conquerors الفاحين	Countries colonized by England البلدان المستعمرة من قبل انجلترا
Conquest غزو	Court of Common Pleas محكمة القانون العام
Consequences الآثار	Cradle of Anglo-Saxon law مهد القانون الأنجلو سكسوني
Constitutional law القانون الدستوري	Creating law إنشاء القانون
Context سياق الكلام	Creators المبدعين
Continental Europe قارة أوروبا	Criminal code التقنين الجنائي
Continuing history التاريخ المستمر	Criminal law القانون الجنائي
Continuity استمرارية	Crown Prosecution Service

دائرة النيابة العامة

D

Deceased persons

الأشخاص المتوفيين

Deciding

تقرير

Declaration of independence

إعلان الاستقلال

Deemed

تعتبر

Default system

النظام الافتراضي

Defendant

المُدعى عليه

Detract

ينتقص

Discarding

رمية

Disinterested strangers

الغرباء غير المتحمسين

Distinctive body

هيئة مميزة

Doctrine of precedent

مبدأ الأسبقية

Dry laconic prose

النثر اللامع الجاف

E

Ecclesiastical court

المحكمة الكنسية

Edict

مرسوم

Embraced

احتضنت

Emphasis

تشديد

Enacted

إصدار

Enduring

مستمر

English parliament

البرلمان الإنجليزي

Enormous power

قوة هائلة

Entrust

Equity	ودع	Focus	يركز على
Evidence	العدالة	Former Soviet bloc	الكتلة السوفيتية السابقة
Exchequer	دليل	Fortified	محصن
Expound	خزانة الدولة	Furthermore	علاوة على ذلك
Ex-wife	شرح		
	الزوجة السابقة	Gaps	ثغرات
		General pattern of thought	النمط العام للفكر
Fact	الحقيقة	General principles	المبادئ العامة
Family law	قانون العائلة	German versions	الإصدارات الألمانية
Fining	تغريم	Get rid of	تخلص من
Fiscal matters	المسائل المالية	Ghost	شبح
Flexible	مرن	Good faith	

H	حسن النية Individual complainant صاحب الشكوى الفردية
Handed down	Influential models نماذج مؤثرة
Higher courts	Injunction إنذار قضائي
Historically	Inquiries استفسارات
Honestly	Insurance التأمين
I	بكل صراحة Intellectual property الملكية الفكرية
Imprisoning	Interpretation of English law تفسير القانون الإنجليزي
In particular	Intrusions اختراقات
Incidence	J
Incremental	Judges القضاة
Individual and distinctive voices	Judicial creation إنشاء القضاء
الأصوات الفردية المميزة	Judicial nature

	الطبيعة القضائية	قانون الملكية	
Judicial review		Law of theft	
	مراجعة قضائية	قانون السرقة	
Judiciary		Law of torts	
	السلطة القضائية	قانون الأضرار	
Jurisprudence		Lay down	
	فقه	أرقد	
Justinian's collection		Laypersons	
	مجموعة جوستنيان	العلمانيون	
 K		Le procPs	
King's courts		لو بروبس	
	محاكم الملك	Leaked to	
King's advisor		تسربت إلى	
	مستشار الملك	Legal disputes	
King's Bench		المنازعات القانونية	
	مقعد الملك	Legal issue	
 L		المسألة القانونية	
Laid down		Legal norms	
	المنصوص عليها	القواعد القانونية	
Law of contract		Legal vocabulary	
	قانون العقود	المفردات القانونية	
Law of property		Legislative document	

	وثيقة تشريعية
Local jurisdiction	
	الولاية القضائية المحلية
Lower courts	
	المحاكم الأدنى
M	
Makers	
	صناع
Manorial courts	
	المحاكم الإدارية
Maritime law	
	القانون البحري
Medieval theory	
	نظرية القرون الوسطى
Merely adjust	
	مجرد ضبط
Middle and Far East	
	الشرق الأوسط والشرق الأقصى
Mistranslated	
	ترجم
Models	
	تصميمات

Murder	
	قتل
N	
Name of the monarch	
	اسم الملك
Non-regulation	
	عدم التنظيم
Notion	
	خيالي
Nurture	
	تغذية
O	
Oath	
	حلف اليمين
Obvious example	
	مثال واضح
Officials	
	مسؤولون
Openly	
	بكل وضوح
Opinions	
	آراء

Oral	نسب
عن طريق الفم	Perceptions
Ordeal	تصورات
محنة	Peripheral figure
Outset	الرؤية الشكلية أو الخارجية
بداية	Persuasive authority
Overturn	السلطة المقنعة
قلب	Piecemeal
	تدرجي
Partial legislation	Plaintiff
تشريعات جزئية	مُدعي
Particular lawsuits	Precedent-based element
الدعاوى الخاصة	عنصر يستند إلى سابقة
Parties	Precedent
أطراف الدعوى – أحزاب	سابقة قضائية
Partnership Act	Predominant nature
قانون الشراكة	الطبيعة السائدة
Paths	Prestige
مسارات أو طرق	هبة
Patterns	Presumed
أنماط	مُفترض
Pedigree	Prevail

ساد
Prevailing view
العرض السائد
Private law
القانون الخاص
Proceedings
إجراءات
Professional judge
القاضي المهني
Promulgated
صَدَر
Property
خاصية
Prosecutions
النيابة
Prosecutor
النائب العام
Proven
مؤكد
Public agency
وكالة عامة
Punch

لكمة
Punishments
عقوبات
Purposes and rationales
الأهداف والمبررات
Q
Quebec
كوبا
Questions
المسائل
R
Ranks
صفوف
Rationing
تقنين
Realm
مملكة
Recruited
تجنيد
Rediscovered
أعاد اكتشاف
Reduced to writing

Reign	تقليل الكتابة	Save for the constitution	حماية الدستور
Renaissance of the scientific Polish	ملك	Secular	علماني
Rendering	عصر النهضة العلمية البولندي	Sensibly	معقول
Respondent	استدعاء	Shared by English jurists	يشاركها الفقهاء الإنجليز
Revise	المُدعى عليه	Short session	جلسة قصيرة
Revolution	تراجع	Shortcoming	عيب أو قصور
Royal Courts	ثورة	Signify	دلالة
Rules on persons and family	محاكم ملكية	Similarly	بالمثل
Rulings	القواعد المنظمة لعلاقات الأشخاص والأسرة	Sporadic	متقطع
	الأحكام	Spread over a number of sessions	ينقسم إلى عدد من الجلسات
		Spread	

Statement	انتشار	structural	
Statutory law	بيان	Torts	بقاء الدور الهيكلي
Strove	القانون الوضعي	Transactions	الأضرار
Structure	جاهد	Trial	المعاملات
Substantive features	بناء أو هيكل	Trusts	التجربة
	الصفات الفنية		ثقة
			
Taken on the launch	أُخذت على الإطلاق	Under the guise	تحت ستار
Territories	أقاليم	Unfair	غير منصف
The jury	المُحلف	Unique its kind	فريد من نوعه
The predominance of procedural nature	هيمنة الطابع الإجرائي	University law schools	مدارس القانون الجامعية
The survival of the role		Unlawfully	بشكل غير قانوني



Verdict

حكم

Victims' rights

حقوق الضحايا

Victim

ضحية



Wherever

أينما

Wide-ranging

واسعة النطاق

Widespread legal system

نظام قانوني واسع الانتشار

Wills and intestacy

الوصايا والأمانة

Witnesses

شهود عيان

Section 2

Sources Of English legal system

Sources of law in its narrow sense mean the origins of law (i.e. the binding rules governing human conduct).

More generally, it means any premise of a legal reasoning. Such sources may be international, national, regional or religious.

The term "sources of law" also refers to the sovereign or the state from which the law derives its force or validity. In civil law systems, one has only to look at the appropriate code; but in common law systems one needs to look at legislation (primary and secondary) and at the decided cases that comprise judicial precedent.

Though the systems differ in the contents of their laws and the institutions and professions which surround them, the indigenous sources of laws are in fact similar in all three jurisdictions in Great British. Remember also that European laws from the European Union (and in the future perhaps, the European Convention on Human Rights) are also a source of laws.

Subsection 1: Legislation or statutory laws (Acts of Parliament)

Legislation has become the commonest source of new laws or of law reform since around the Seventeenth century. So when we think of laws in modern times, we often think of sections in an Act of Parliament. Statutes can be applied to all or any combination of jurisdictions within the United Kingdom, whereas the common law jurisdictions are more limited. Acts of Parliament which apply to everyone throughout one or more jurisdictions are called public or general Acts. But Acts may also be limited to geographical locations within a jurisdiction (e.g. the West Yorkshire Act 1980 and local bye-laws) or to specific persons or companies.

The most important legislation is Acts of Parliament (called primary legislation). This becomes valid through being approved (after debate) in the House of Commons and (with some exceptions under processes laid down by the Parliament Acts 1911-1949) the House of Lords; it then receives the Royal Assent from the Queen. Here are some examples of some statutes: Education (Student Loans) Act 1998, Education (Schools) Act 1997, and Protection from

Harassment Act 1997, School Inspections Act 1996 and Disability Discrimination Act 1995.

A greater volume of legislation is nowadays made under the authority of primary legislation by Government Ministers, and it does not have to be approved in advance by Parliament. This is called delegated or secondary legislation. Delegated legislation is issued (often by a government minister) under a specific power in the "parent" or "enabling" Act. Such legislation is issued in the form of statutory instruments (there are about three thousand per year) and may be titled "regulations" or "orders".

= Reasons for the use of delegated legislation are as follows:

- 1- To save time in Parliament - the time taken to scrutinize statutory instruments is often zero or, at most, an hour or two.
- 2- To allow for expert input into their design and technical language to be used in their wording.
- 3- To allow flexibility in responding to events and representations.

There are also powers under the Local Government Act 1972 for local authorities to issue delegated legislation - these are called bye-laws.

- **Comparison between legislation and common law.**

Comparing legislation with common law, statutes generally have the power to change the established common law, but the common law cannot overrule or change statutes. A statute can only be overruled or amended by another, later statute. This relationship reflects the legal and political doctrine known as “*Parliamentary Sovereignty*” - the recognition and acceptance that Parliament is the supreme law-making authority in the land.

However, that authority may not be absolute - it has been limited by the relationship with the European Union, and the importance of principles such as the recognition of individual freedoms, democracy and governmental accountability may place further limits on its exercise. Nevertheless, save for these possible limits in extreme circumstances, the judges must normally apply statutes, even if they are contrary to established common law. The task of the judge is to interpret and apply the statute - they cannot disregard it or declare it to be "unconstitutional". In many

other jurisdictions, the judges do have this power to override statutes by declaring them to be inconsistent with the written constitution. This happens in the United States.

There are various theories as to how the judge should interpret statutes. This is not an easy task. The legislation will originally have been written by experts (Parliamentary draftsmen) who write in precise and technical language. But the legislation may be amended by non-experts during its passage through Parliament. And circumstances may be encountered which were not considered by the draftsmen.

- **Roles of legislation interpretation.**

There are three main rules which are used by the judges in interpreting Acts of Parliament.

A) The literal rule - interpret the statute literally, according to its ordinary plain meaning.

B) The golden rule - if the literal interpretation leads to an absurdity, then modify the interpretation to a less obvious meaning. An absurdity may arise from a literal meaning of the words. Alternatively, it may arise from the policy implications of a literal interpretation.

C) The mischief rule - define the problem the Act was meant to remedy and choose the interpretation which best

deals with the problem. In order to determine what was the problem before the Act, the courts can look at, for example, reports from the Law Commission and also Hansard (the journal of debates in Parliament).

The literal rules might be said to be the default position, but the judges will commonly use a more purposive approach (the golden or mischief rules), especially where the legislation seeks to implement a social policy such as the outlawing of sex discrimination.

= Aside from these broad approaches, there are more specific rules of interpretation which fall into two categories

- *Rules of language*: Examples include the "eiusdem generis" (Latin phrase which means of the same kind) rule: where general words follow a list of specific examples, the general words take their meaning from the specific words and so are not as general as they first appear. For example in the phrase houses, flats and other buildings other buildings can mean only other dwellings, and would not include, for example, a church. Another example is "expressio unius est exclusio alterius" (another Latin phrase) - if an Act mentions a specific type, it implies that other types are not included. Words take their meaning from those around them -

ambiguous words or phrases can be clarified by referring to the context in which they are.

- *Presumptions*: the judges make certain assumptions about the intentions of Parliament and require strong evidence to the contrary. These include the presumptions that Parliament does not intend to impose criminal liability, does not intend to take away fundamental and does not intend to exclude the courts from deciding disputes.

Subsection2: Case law (Precedents)

In the common law tradition, courts decide the law applicable to a case by interpreting statutes and applying precedent which record how and why prior cases have been decided. Unlike most civil law systems, common law systems follow the doctrine of *stare decisis*⁽¹⁾, by which most courts are bound by their own previous decisions in similar cases, and all lower courts should make decisions consistent with previous decisions of higher courts.

(1) – There is another term called "Super *stare decisis*" used for important precedent that is resistant or immune from being overturned, without regard to whether correctly decided in the first place. It may be viewed as one extreme in a range of precedential power, or alternatively, to express a belief, or a critique of that belief, that some decisions should not be overturned.

For example, in England, the High Court and the Court of Appeal are each bound by their own previous decisions, but the Supreme Court of the United Kingdom is able to deviate from its earlier decisions, although in practice it rarely does so.

Generally speaking, higher courts do not have direct oversight over day-to-day proceedings in lower courts, in that they cannot reach out on their own initiative (*sua sponte*) at any time to reverse or overrule judgments of the lower courts. Normally, the burden rests with litigants to appeal rulings (including those in clear violation of established case law) to the higher courts. If a judge acts against precedent and the case is not appealed, the decision will stand.

A lower court may not rule against a binding precedent, even if the lower court feels that the precedent is unjust, the lower court may only express the hope that a higher court or the legislature will reform the rule in question. If the court believes that developments or trends in legal reasoning render the precedent unhelpful, and wishes to evade it and help the law evolve, the court may either hold that the precedent is inconsistent with subsequent authority, or that

the precedent should be distinguished by some material difference between the facts of the cases.

If that judgment goes to appeal, the appellate court will have the opportunity to review both the precedent and the case under appeal, perhaps overruling the previous case law by setting a new precedent of higher authority. This may happen several times as the case works its way through successive appeals. Lord Denning, first of the High Court of Justice, later of the Court of Appeal, provided a famous example of this evolutionary process in his development of the concept of estoppel starting in the *High Trees* case: *Central London Property Trust Ltd v. High Trees House Ltd* [1947] K.B. 130.

Judges may refer to various types of persuasive authority to reach a decision in a case. Widely cited non-binding sources include legal encyclopedias such as *Corpus Juris Secundum* and *Halsbury's Laws of England*, or the published work of the Law Commission or the American Law Institute. Some bodies are given statutory powers to issue Guidance with persuasive authority or similar statutory effect, such as the Highway Code.

In federal or multi-jurisdictional law systems there may exist conflicts between the various lower appellate courts. Sometimes these differences may not be resolved and it may be necessary to distinguish how the law is applied in one district, province, division or appellate department. Usually only an appeal accepted by the court of last resort will resolve such differences and, for many reasons, such appeals are often not granted.

Any court may seek to distinguish its present case from that of a binding precedent, in order to reach a different conclusion. The validity of such a distinction may or may not be accepted on appeal. An appellate court may also propound an entirely new and different analysis from that of junior courts, and may or may not be bound by its own previous decisions, or in any case may distinguish the decisions based on significant differences in the facts applicable to each case. Or, a court may view the matter before it as one of "first impression," not governed by any controlling precedent.

Where there are several members of a court, there may be one or more judgments given; only the ratio decidendi of the majority can constitute a binding precedent, but all may be

cited as persuasive, or their reasoning may be adopted in argument. Quite apart from the rules of precedent, the weight actually given to any reported judgment may depend on the reputation of both the court and the judges.

The legal systems within the United Kingdom were based largely on judge-made law (law developed through decisions by judges necessary to decide cases brought before them - called "common law" or case-law) until around the seventeenth century. Each jurisdiction developed its own forms of common law, with Scotland being especially distinct from the rest. Since that time, new laws and law reform have increasingly been brought about through Acts of Parliament, usually inspired by policies of the Government of the day.

Even so, the development of case-law still remains an important source of law. A statement of law made by a judge in a case can become binding on later judges and can in this way become the law for everyone to follow.

Under the English legal system, judges are not necessarily entitled to make their own decisions about the development or interpretations of the law. They may be bound by a decision reached in a previous case.

Two facts are crucial to determining whether a precedent is binding:

1- The position in the court hierarchy of the court which decided the precedent, relative to the position in the court trying the current case.

2- Whether the facts of the current case come within the scope of the principle of law in previous decisions.

In addition, the pronouncement must not be obiter dictum - something said either about the law or the facts of the case which is "by the way", in other words, not strictly necessary for the legal basis for the decisions. Only the ratio decided will be binding. It will comprise the legal principles and rules which are necessary to solve the problem before the court. Obiter dicta are not binding, but they may be treated as of "persuasive authority" - later judges are entitled to read them and be influenced by them, but they are not obliged to follow these parts of judicial pronouncements.

- **Summary:**

We can summarize these rules -as the doctrine of precedent (or, to use lawyers' language, the doctrine of stare decisis). A later judge will have to determine (i) what pronouncements from earlier decisions are binding and (ii)

whether any is relevant - the later judge may say that the case before the court is "distinguishable" from the earlier case (i.e. has materially different facts so as to fall within different areas of law.

Precedent has a very important role in the common law. It ensures certainty and consistency and logical progression and development in the law. At the same time it can be rigid and also complex - what is "the law" on a subject may be very difficult to find or to state as it is spread across many cases. So, many countries (especially in Continental Europe) prefer a codified system in which laws are set out in legislation and cases which apply them may be illustrative but do not become binding. The law is also easier to find and to state and is rationally prospective rather than based on the chance event of litigation, which may give rise to laws based on extreme or unusual situations or unevenly argued cases.

For example, here is the offence of murder in US Federal Law. By contrast, the law of murder in England is contained in several cases, and even having read them there may be room for doubt. As for English law, the classic definition of murder is considered to be that given by Lord Chief Justice, Coke who (writing in the early seventeenth century) said;

"Murder is when a man of sound memory and of the age of discretion, unlawfully killed within any county of the realm any reasonable creature in rerum natura under the King's peace, with malice aforethought, either expressed by the party or implied by law, so as the party who, or hurt etc. die of the wound or hurt etc. within a year and a day of the same."

Persuasive precedent ⁽¹⁾.

Persuasive precedent (also persuasive authority) is precedent or other legal writing that is not binding precedent but that is useful or relevant and that may guide the judge in making the decision in a current case.

Persuasive precedent includes cases decided by lower courts, by peer or higher courts from other geographic jurisdictions, cases made in other parallel systems (for example, military courts, administrative courts, indigenous/tribal courts, state courts versus federal courts in the United States), statements made in dicta, treatises or academic law reviews, and in some exceptional circumstances, cases of other nations, treaties, world judicial bodies, etc.

(1) - In civil law and pluralist systems, as under Scots law, precedent – in general - is not binding but case law is taken into account by the courts.

In a "case of first impression", courts often rely on persuasive precedent from courts in other jurisdictions that have previously dealt with similar issues. Persuasive precedent may become binding through its adoption by a higher court.

Contrasting role of case law in common law.

The different roles of case law in civil law and common law traditions create differences in the way that courts render decisions. Common law courts generally explain in detail the legal rationale behind their decisions, with citations of both legislation and previous relevant judgments, and often an exegesis of the wider legal principles.

These are called *ratio decidendi* and constitute a precedent binding on other courts; further analyses not strictly necessary to the determination of the current case are called *obiter dicta*, which have persuasive authority but are not technically binding. By contrast, decisions in civil law jurisdictions are generally very short, referring only to statutes. The reason for this difference is that these civil law jurisdictions apply a form of extreme legal positivism which holds that legislation is the only valid source of law because it has been voted on democratically;

thus, it is not the judiciary's role to create law, but rather to interpret and apply statute, and therefore their decisions must reflect that.

Subsection3: Equity

Definition of equity

There are many definitions of equity such as:

- Justice according to fairness especially as distinguished from mechanical application of rules prompted by considerations of equity comity between nations.
- A system of law originating in the English chancery and comprising a settled and formal body of legal and procedural rules and doctrines that supplement, aid, or override common and statute law and are designed to protect rights and enforce duties fixed by substantive law: trial or remedial justice under or by the rules and doctrines of equity.
- A body of legal doctrines and rules developed to enlarge, supplement, or override a narrow rigid system of law.

History of Equity

Equity, principles of justice originally developed by the English chancellor. In Anglo-American jurisprudence

equitable principles and remedies are distinguished from the older system that the common law courts evolved.

One of the earliest functions of the king's chaplain (the chancellor) and of the chancery (the office that he headed) was to govern access to the royal courts by issuing on application the appropriate original writ. At first the chancellor had great discretion in framing writs, but in time he was limited to a few rigidly circumscribed forms, and in certain cases worthy claims could not be satisfied. From this inadequacy arose the practice of appealing directly for aid to the chancellor as the keeper of the king's conscience.

By the early 16th century. A fairly well-defined jurisdiction was exercised by the court of chancery in rivalry with the common law. In the 17th cent. It was definitely established that the court of chancery would decide any claim to jurisdiction that the courts of common law disputed. The early chancellors purported to dispense equity in its original sense of fair dealing, and they cut through the technicalities of common law to give just treatment. Some of their principles were derived from Roman law and from canon law.

Soon, however, equity amassed its own body of precedents and tended to rigidity. Equity, even in its more limited modern sense, is still distinguished by its original and animating principle that no wrong should be without an adequate remedy. Among the most notable achievements of equity were the trust and the injunction. Because the decree (final order) of an equity court operated as an order of the king, disobedience might be punished as contempt in legal remedies, on the contrary, the plaintiff was limited to enforcing his (monetary) judgment.

The fact that equity trials were decided without a jury was thought advantageous in complex cases. The coexistence of different systems of justice and delays in the courts of chancery came to present such great procedural difficulties that in England the Judicature Act was adopted (1873) to amalgamate law and equity. In the United States amalgamation had begun with the New York procedure code (1848) drafted by David Dudley Field. Today only a few of the states have separate equity courts. Of the remaining states some divide actions and (to a lesser extent) remedies into legal and equitable, while the others have almost entirely abolished the distinction.

Even in those states where law and equity remain unmerged, they are often handled by two sides of the same court, with relatively simple provisions for the transfer of a case that is brought on the wrong side.

Subsection4: Other sources

1- Parliamentary Conventions (they mustn't be confused with International Conventions)

Parliamentary Conventions are not strict rules of law, but their breach may lead to breach of law. They typically are found within the English legal system, and they help compensate for the UK's lack of a single written constitution. Typically, parliamentary conventions govern relationships, such as that between the House of Lords and the House of Commons; between the monarch and Parliament; and between Britain and its colonies.

For instance, after the Finance Act 1909, the House of Lords lost its power to obstruct the passage of bills, and now may only delay them. The prerogative powers are subject to convention, and in 2010, the monarch's power to dissolve Parliament was abolished. Britain's tradition with its colonies

is that they are self-governing (although, historically, not necessarily with universal suffrage).

2- Customs

A "General Custom" as a source of law is not normally written, but if a practice can be shown to have existed for a very long time, such as "since time immemorial" (1189 AD), it becomes a source of law.

A "Particular Custom" (or "private custom") may arise and become a right with the force of law when a person or a group of persons has from long usage obtained a recognized usage, such as an easement.

3- Books of Authority (Jurisprudence)

Up until the 20th century, English judges felt able to examine certain "books of authority" for guidance, and both Coke and Blackstone were frequently cited. This old practice of citing only authors who are dead has gone; nowadays notable legal authors may be cited, even if they are still alive.

4- International Treaties

Governments may sign International Conventions and Treaties; but these normally become binding only when they

are ratified. Most conventions come into force only when a stated number of signatories have ratified the final text.

An international convention may be incorporated into a statute (e.g. Hague-Visby Rules in Carriage of Goods by Sea Act 1971; e.g. the Salvage Convention in the Merchant Shipping Act 1995). The Council of Europe Convention on Human Rights is enforced by the ECHR in Strasbourg.

5- European Community Law

The European Union is special example of international law. European nations that join the EU thereby adopt all ECL to date (the *acquis communautaire*), namely: treaty provisions, regulations, directives, decisions, and precedents.

Member States become subject to “Brussels” and to the binding precedent decisions of the Court of Justice of the European Union (CJEU) in Luxembourg.

However, Brussels may only act and legislate in accordance with the EU treaties, and the CJEU's supremacy applies only in matters of EU law.

Vocabulary of
(Chapter 1 – section 2)

A

Absurdity

سخافة

Academic law reviews

مراجعات القانون الأكاديمي

Acts of Parliament

قوانين البرلمان

Adequate remedy

سبب انتصاف كافي

Advantageous

مفيد

After debate

بعد المناقشة

Alternatively

بدلاً من

Amalgamate

دمج

Amassed

جُمعت

Ambiguous words

كلمات غامضة

American Law Institute

معهد القانون الأمريكي

Animating

مُنْعَش

Appeal

مناشدة

Argued cases

الحالات المطروحة أو المعروضة

Argument

جدال

Aside from

بجانب

Authority

السلطة

B

Books of Authority

كتب السلطة

Breach

خرق

Brussels

بروكسيل

Burden rests

يقع عليه عبء

Bye-laws

القوانين الفرعية

C

Certainty

سياقات

Chancery

مكتب المحفوظات

Conscience

ضمير

Consistency

تناسق

Contempt

ازدراء

Contrary

عكس

Contrasting role

دور متناقض

Critique of

نقد

Crucial

مهم

Current case

الحالة الراهنة

D

Decree

مرسوم

Default position

الوضع الافتراضي

Delegated or secondary

legislation

التشريعات المفوضة أو الثانوية

Deviate

ينحرف

Direct oversight

الإشراف المباشر

Discretion

تقدير

Disobedience

عصيان

Disregard

تجاهل

Dissolve Parliament

حل البرلمان

Distinguishable

مميز

Distinguish

يميز

District

منطقة

Dwellings

E	المساكن
Easement	
	تخفيف
Encountered	
	واجهت
English chancery	
	المجلس الإنجليزي
Enlarge	
	يضخم
Ensure	
	يضمن
Entitled	
	مخول
Equity comity	
	حقوق الملكية
Established	
	تأسست
European Convention on	
Human Rights	
	الاتفاقية الأوروبية لحقوق الإنسان
European Union	
	الاتحاد الأوروبي
Even so	

	رغم ذلك
Exegesis	
	تفسير
F	
Fairness	
	عدل
Final text	
	النص النهائي
Finance Act	
	قانون المالية
First impression	
	الانطباع الأول
Framing	
	صياغة
G	
General Custom	
	عُرف عام
Geographical locations	
	المواقع الجغرافية
Governmental accountability	
	المساءلة الحكومية
Granted	
	مُنحت
Guidance	

	توجيه
H	
Handled by	أُنجز من قبل
Hierarchy	تسلسل هرمي
Highway Code	تشريع الطرق السريعة
House of Commons	مجلس العموم
House of Lords	مجلس اللوردات
I	
Illustrative	واضح
Impose criminal liability	فرض المسؤولية الجنائية
Inadequacy arose	عدم كفاية الدليل
Inconsistent	تتعارض مع
Incorporated into	أُضيف إلى
Indigenous sources	

	المصادر الأصلية
Individual freedoms	الحريات الفردية
Injunction	إنذار قضائي
Intentions	نوايا
International Treaties	معاهدات دولية
Issuing on	صادر بتاريخ
J	
Judgment	حكم
Judicature Act	قانون القضاء
Junior courts	العليا المحاكم
K	
King's chaplain	قسيس الملك
L	
Law Commission	لجنة القانون

Law reform

إصلاح القانون

Lawyers' language

لغة المحامين

Legal positivism

الوضع القانوني

Legal remedies

معالجات قانونية

Legal encyclopedias

الموسوعات القانونية

Litigants

متقاضين

Local bye-laws

القوانين المحلية

Logical progression

التقدم المنطقي

Lord Chief Justice

رئيس القضاة

M

Mechanical application

التطبيق التلقائي

Military courts

المحاكم العسكرية

More generally

بشكل عام

N

Narrow sense

بالمعنى الضيق

Nevertheless

ومع ذلك

O

Obiter dictum

قرار فاصل

Obliged

مُلزم

Obstruct the passage of bills

يعوق تمرير القوانين

On the contrary

على العكس تماماً

Opportunity

فرصة

Ordinary plain meaning

المعنى العادي أو المعتاد

Outlawing of sex

discrimination

حظر التمييز القائم على أساس

الجنس

Override

تجاوز	Overrule
ألغى	Own initiative
مبادرة خاصة	P
قانون التمكين	Parent or enabling Act
اتفاقيات برلمانية	Parliamentary Conventions
البرلمانيون	Parliamentary draftsmen
السيادة البرلمانية	Parliamentary Sovereignty
غرف خاص	Particular Custom
المحاكم العليا	Peer or higher courts
مقنعة سلطة	Persuasive authority
الآثار السياسية	Policy implications
فرضية	Premise

امتيازات	Prerogative powers
افتراضات	Presumptions
مطالب من قبل	Prompted by
تصريح	Pronouncement
اقترح	Propound
محافظة	Province
مُرغم على الاستغناء	Purported to dispense
مختلف تماماً	Quite apart
	R
تم التصديق عليه	Ratified
نسبة التصويت	Ratio decidendi
التعرف على	Recognition
	Relevant

ذو صلة بـ
Rely on
يعتمد على
Remedial justice
العدالة العلاجية
Remedies
معالجات
Render
يجعل
Representations
توكيلات
Reputation
سمعة
Rigidly circumscribed
forms
شكليات صارمة
Rigid
جامد
Rivalry with
يتنافس مع
Room for doubt
غرفة الشك
Royal Assent
الموافقة الملكية

Rules of language
قواعد اللغة
 S
Satisfied
راض
Scope of
نطاق
Scots law
القانون الاسكتلندي
Scrutinize
يفحص
Seek to
يسعى لـ
Signatories
الموقعون
Since time immemorial
منذ وقت يصعب تذكره
Social policy
السياسة الاجتماعية
Sound memory
ذاكرة سليمة
Sources of English legal
system
مصادر النظام القانوني الإنجليزي

Sovereign

سيادة

Statements made indict

بيانات اتهام

Statutory instruments

الصكوك القانونية

Strict rules

قواعد صارمة



Technicalities

أمور فنية

The golden rule

القاعدة الذهبية

The literal rule

القاعدة الحرفية

The mischief rule

قاعدة الضرر

Treatises

الاطروحات

Trends

اتجاهات



Unconstitutional

غير دستوري

Universal suffrage

اقتراع عام

Unjust

ظالم

Unlawfully killed

قتل بشكل غير قانوني

Unmerged

غير مُدمج



Validity

صلاحية

Violation

عنف



Worthy claims

مطالبات جدية

Chapter two

British Political

System

Chapter two

British political system ⁽¹⁾

= SHORT HISTORY

To understand fully any country's political system, one needs to understand something of its history. This is especially true of the United Kingdom because its history has been very different from most other nations and, as a result, its political system is very different from most other nations too.

Like its (unwritten) constitution, the British state evolved over time. We probably need to start in 1066 when William the Conqueror from Normandy invaded what we now call

(1) – In classical political theory, there are three arms of the state:

1. The executive - the Ministers who run the country and propose new laws
 2. The legislature - the elected body that passes new laws.
 3. The judiciary - the judges and the courts who ensure that everyone obeys the laws.
- In the political system of the United States, the constitution provides that there must be a strict division of powers of these three arms of the state, so that no individual can be a member of more than one. So, for example, the President is not and cannot be a member of the Congress. This concept is called 'separation of powers', a term coined by the French political, enlightenment thinker Montesquieu. This is not the case in the UK where all Ministers in the government are members of the legislature and one individual, the Lord Chancellor, is actually a member of all three arms.

England, defeated the Anglo-Saxon King Harold and established a Norman dynasty. The Normans were not satisfied with conquering England and, over the next few centuries, tried to conquer Ireland, Wales and Scotland. They succeeded with the first two and failed with the last despite several wars over the centuries.

By one of those ironical twists of history, when Queen Elizabeth of England died in 1603, she was succeeded by her cousin James VI, King of Scots who promptly decamped from Edinburgh and settled in London as King James I of England while keeping his Scots title and running Scotland by remote control. Regal pickings were more lucrative in his southern capital.

A century later the Scottish economic and political elite bankrupted themselves on the Darien Scheme and agreed to a scheme of Union between England and Scotland to make the solvent again and so Great Britain with one Parliament based in London came into being. The Irish parliament was abolished in 1801 with Ireland returning members to Westminster and the new political entity was the United Kingdom of Great Britain and Ireland.

The southern (Catholic) Irish never reconciled themselves to being ruled by the English and rebelled in 1916 and gained independence in 1922. The northern (Protestant) Irish did not want independence and so the United Kingdom of Great Britain and Northern Ireland arrived. Not a snappy name.

Meanwhile, although the Normans were the last to mount a successful invasion of the country, there were plenty of other plans to conquer the nation, notably the Spanish under King Philip II in 1588, the French under Napoleon in 1803-1805, and the Germans under Hitler in 1940. None succeeded.

Furthermore, in recent centuries, Britain has not had a revolution of the kind experienced by so many other countries. Some might argue that the English Civil War (1642-1651) was the nation's revolution and - although it was three and a half centuries ago - it did bring about a major shift in power, but the main constitutional consequence - the abolition of the monarchy - only lasted 11 years and the Restoration of the Monarchy has so far lasted 350 years (although it is now, of course, a very different monarchy). There was a time in British history which we call the Glorious Revolution (1688) but it was a very English

revolution, in the sense that nobody died, if a rather Dutch revolution in that it saw William of Orange take the throne.

So the British have never had anything equivalent to the American Revolution or the French Revolution, they have not been colonized in a millennium but rather been the greatest colonizers in history, and in neither of the two world wars were they invaded or occupied.

=HOW HISTORY HAS SHAPED THE POLITICAL SYSTEM?

The single most important fact in understanding the nature of the British political system is the fundamental continuity of that system. For almost 1,000 years, Britain has not been invaded or occupied for any length of time or over any substantial territory as the last successful invasion of England was in 1066 by the Normans. Is this true of any other country in the world? I can only think of Sweden.

This explains why:

- Almost uniquely in the world, Britain has no written constitution (the only other such nations are Israel & New Zealand).

- The political system is not neat or logical or always fully democratic or particularly efficient.
- Change has been very gradual and pragmatic and built on consensus.
- British attitudes towards the rest of Europe have been insular, not just geographically but culturally, which was a major factor behind the Brexit decision of 23 June 2016.

To simplify British political history very much, it has essentially been a struggle to shift political power and accountability from the all-powerful king - who claimed that he obtained his right to rule from God - to a national parliament that was increasingly representative of ordinary people and accountable to ordinary people. There have been many milestones along this long and troubled road to full democracy.

A key date in this evolution was 1215 when King John was forced to sign the Magna Carta which involved him sharing power with the barons. This is regarded as the first statement of citizen rights in the world - although Hungarians are proud of the Golden Bull of just seven years later.

The so-called Model Parliament was summoned by King Edward I in 1295 and is regarded as the first representative assembly. Unlike the absolute monarchs of other parts of Europe, the King of England required the approval of Parliament to tax his subjects and so, then as now, central to the exercise of power was the ability to raise funds.

The bicameral nature of the British Parliament - Commons and Lords - emerged in 1341 and the two-chamber model of the legislature has served as a template in very many other parliamentary systems.

The Bill of Rights of 1689 - which is still in effect - lays down limits on the powers of the crown and sets out the rights of Parliament and rules for freedom of speech in Parliament, the requirement for regular elections to Parliament, and the right to petition the monarch without fear of retribution.

It was the 19th century before the franchise was seriously extended and each extension was the subject of conflict and opposition. The great Reform Act of 1832 abolished 60 'rotten', or largely unpopulated, boroughs and extended the vote from 400,000 citizens to 600,000, but this legislation -

promoted by the Whigs (forerunners of the Liberals) - was only carried after being opposed three times by the Tories (forerunners of the Conservatives). Further Reform Acts followed in 1867 and 1884. It was 1918 before the country achieved a near universal franchise and 1970 before the last extension of the franchise (to 18-21 year olds).

Another important feature of British political history is that three parts of the United Kingdom - Scotland, Wales and Northern Ireland - have a special status and have local administrations with a wide range of responsibilities.

However, England - which represents about 84% of the total UK population of around 65 million - does not have a clear and strong sense of regionalism. So the British political system does not have anything equivalent to the federal system of the 50 states in the USA. The nature of this (dis)United Kingdom took on a new form in the General Election of May 2015 when the Scottish National Party won 56 out of 59 seats in Scotland.

The final important part of British political history is that, since 1973, the UK has been a member of what is now called the European Union (EU). This now has 28 Member States

covering most of the continent of Europe. Therefore the UK Government and Parliament are limited in some respects by what they can do because certain areas of policy or decision-making are a matter for the EU which operates through a European Commission appointed by the member governments and European Parliament elected by the citizens of the member states.

However, in a referendum held on 23 June 2016, the British people narrowly voted that the country should leave the European Union, a process that was activated in March 2017 but will take two years and be very complex.

The year 2015 was a special year for the British Parliament as it was the 750th anniversary of the de Montfort Parliament (the first gathering in England that can be called a parliament in the dictionary sense of the word), along with the 800th anniversary of the Magna Carta, the document that set the scene for the later 1265 de Montfort Parliament.

Section 1

The executive power

Under the uncodified British constitution, executive authority lies with the monarch, although this authority is exercised only by, or on the advice of, the prime minister and the cabinet. The Cabinet members advise the monarch as members of the Privy Council. They also exercise power directly as leaders of the Government Departments.

The head of the government, the prime minister, also has weekly meetings with the monarch, when she "has a right and a duty to express her views on Government matters"...These meetings, as with all communications between The Queen and her Government, remain strictly confidential. Having expressed her views, The Queen abides by the advice of her ministers".

The government is led by the Prime Minister, who selects all the remaining ministers. The prime minister and the other most senior ministers belong to the supreme decision-making committee, known as the Cabinet. The government ministers all sit in Parliament, and are accountable to it. The

government is dependent on Parliament to make primary legislation and since the Fixed-terms Parliaments Act 2011, general elections are held every five years to elect a new House of Commons, unless there is a successful vote of no confidence in the government or a two-thirds vote for a snap election (as was the case in 2017) in the House of Commons, in which case an election may be held sooner.

After an election, the monarch (currently Queen Elizabeth II) selects as prime minister the leader of the party most likely to command a majority of MPs in the House of Commons.

Sub-section1: The U.K Monarch

The British political system is headed by a monarchy but essentially the powers of the monarch as head of state are ceremonial. The British monarch, currently Queen Elizabeth II, is the head of state and the sovereign, but not the head of government.

- **Choice of the monarch**

Traditionally the choice of monarch has been determined on the hereditary and primogeniture principles which mean that the oldest male child of a monarch was the next in line to the throne. Under the terms of the Act of Settlement of 1701, the

monarch and the monarch's spouse could not be Catholics because the UK monarch is also the Head of the Church of England. In 2015, the primogeniture principle was abolished, so that the next in line can now be a female eldest child, and the monarch can marry a Catholic but not he or she be one.

*** Powers of the Monarch**

(1) The most important practical power is the choice of the Member of Parliament to form a government, but the monarch follows the convention that this opportunity is granted to the leader of the political party with the most seats in the House of Commons or who stands the best chance of commanding a majority in a vote of confidence in the Commons.

(2) Although any remaining powers of the monarchy are largely ceremonial, the Royal Family does have some subtle and hidden influence on the legislative process because of a little-known provision that senior royals- notably the Queen and her eldest son the Prince of Wales , have to be consulted about legislation that might affect their private interests and given the opportunity to have such legislation amended.

The monarch takes little direct part in governing the country, and remains neutral in political affairs.

However, the legal authority of the state that is vested in the sovereign, known as The Crown, remains the source of the executive power exercised by the government.

(3) In addition to explicit statutory authority, in many areas the Crown also possesses a body of powers known as the Royal Prerogative, which can be used for many purposes, from the issue or withdrawal of passports to declaration of war. By long-standing custom, most of these powers are delegated from the sovereign to various ministers or other officers of the Crown, who may use them without having to obtain the consent of Parliament.

Royal Prerogative powers include, but are not limited to, the following:

(A) Domestic powers

- The power to dismiss and appoint a prime minister. This power is exercised by the monarch herself. By strong convention she must appoint the individual most

capable of commanding a majority in the House of Commons.

- The power to dismiss and appoint other ministers. This power is exercised by the monarch on the advice of the prime minister.
- The power to grant Royal Assent to bills, making them valid laws. This is exercised by the monarch, who also theoretically has the power to refuse assent, although no monarch has refused assent to a bill passed by Parliament since Queen Anne in 1708.
- The power to commissar officers in the Armed Forces.
- The power to command the Armed Forces of the United Kingdom. This power is exercised by the Defense Council in the Queen's name.
- The power to appoint members to Her Majesty's Most Honorable Privy Council.
- The power to issue and withdraw passports. This is exercised by the Home Secretary.
- The Prerogative of mercy (though capital punishment has been abolished, this power is still used to remedy errors in sentence calculation).
- The power to grant honors.

- The power to create corporations via Royal Charter.

(B) Foreign powers

- The power to ratify and make treaties.
- The power to declare war and conclude peace with other nations.
- The power to deploy the Armed Forces overseas.
- The power to recognize states.
- The power to credit and receive diplomats.

Even though the United Kingdom has no single constitutional document, the government published the above list in October 2003 to increase transparency, as some of the powers exercised in the name of the monarch are part of the Royal Prerogative. However, the complete extent of the Royal Prerogative powers has never been fully set out, as many of them originated in ancient custom and the period of absolute monarchy, or were modified by later constitutional practice.

Sub-section2: The U.K. Government

All Government Ministers have to be a member of either the House of Commons (most of them) or the House of Lords

(the remainder of them) and every Government Department will have at least one Minister in the Lords, so that the Department can speak in either House as necessary.

The number of Ministers varies from administration to administration, but typically there will be around 120, the 20 or so most senior being Cabinet Ministers.

Historically most British governments have been composed of ministers from a single political party which had an overall majority of seats in the House of Commons and the 'first-past-the-post' (FPTP) electoral system greatly facilitates and indeed promotes this outcome. However, occasionally there have been minority governments or coalition governments.

For five years, the UK had its first coalition government in 65 years when, in May 2010, the Conservatives went into coalition with the Liberal Democrats because in the General Election they did not secure a majority of the seats. In this coalition, the Lib Dems had 17 ministers led by the Deputy Prime Minister Nick Clegg.

However, at the General Election of May 2015, the Conservative Party won an overall majority and the normal

arrangement resumed of all Ministers coming from the same party. Then, at the General Election of June 2017, the Conservatives failed to win an overall majority resulting in what is called a 'hung parliament' and so the party is governing with the support of the Democratic Unionist Party (DUP) of Northern Ireland.

This is not a formal coalition but a 'confidence and supply' agreement in which the DUP has undertaken - in return for a comprehensive package of measures and funding - to support the government on key votes.

- **The Prime Minister**

The UK does not have a President. Constitutionally the head of state is the monarch who is a hereditary member of the Royal Family. However, the monarch has very few formal powers and stays above party politics. He or she receives a weekly oral report from the Prime Minister, a tradition which began with King George I in 1714 because this German had struggled to follow the English deliberations of his Cabinet.

Therefore, in practice, the most important person in the British political system is the Prime Minister. The first modern Prime Minister was Sir Robert Walpole who served

from 1721-1742, so the current PM Theresa May is the 54th (and only the second woman to hold the post).

In theory, the Prime Minister simply chooses the ministers who run Government departments and chairs the Cabinet - the collection of the most senior of those Ministers.

In practice, however, the Prime Minister is a very powerful figure and increasingly has been behaving much like a president in other political systems, especially in the area of foreign policy.

The official residence of the Prime Minister is at 10 Downing Street in central London and the country residence of the Prime Minister is at Chequers in Buckinghamshire.

One British Prime Minister has been assassinated: Spencer Perceval was shot dead in the House of Commons in 1812.

- **Government Ministers**

All Government Departments are run by Ministers who are either Members of the House of Commons or Members of the House of Lords. There are three classes of Minister:

(1) Secretary of State - This is usually the head of a Department.

(2) Minister of State - This is a middle-ranking minister.

(3) Parliamentary Under-Secretary of State - This is the most junior class of minister.

The Prime Minister and all the Secretaries of State together comprise an executive body of government called the Cabinet. The Cabinet meets usually once a week on Tuesday morning. Cabinet meetings are confidential and all members are bound by any decision that it takes in a practice called collective responsibility.

An extensive system of Cabinet Committees considers matters either before they go to Cabinet or (more usually) instead of them going to Cabinet.

Although all Ministers are appointed by the Prime Minister and report to him, ultimately all Ministers are accountable to Parliament:

- About once a month, they have to face questions in the House of Commons about the work of the Department.
- Each government department has a special committee of the House of Commons which watches the work of that Department.

- Any government initiative or important statement concerning a Department must be the subject of an appearance in the House of Commons by a minister from that Department.

- **Government Departments**

The most important political departments are called:

(1) The Treasury - In most countries, this would be called the Ministry of Finance. It is responsible for the raising of all taxes and the control of all government expenditure plus the general management of the economy. The head of the Treasury is called the Chancellor of the Exchequer.

(2) The Home Office - In most countries, this would be called the Ministry of the Interior. It is responsible for criminal matters, policing, and immigration. The Head of the Home Office is called the Home Secretary.

(3) The Foreign and Commonwealth Office - In most countries, this would be called the Ministry of Foreign Affairs. It is responsible for all international relationships, especially membership of the European Union. The head of the Foreign Office is called the Foreign Secretary.

Many other UK Government Departments are similar to those in other countries and cover subjects such as education, health, transport, industry, and justice. However, there are also small departments for Scotland, Wales and Northern Ireland.

When talking about the British Government, the media will often use the term Whitehall because a number of Government Departments are located along a central London Street very close to Parliament called Whitehall.

- **The civil service**

Each Secretary of State is able to appoint a couple of political advisers – formally known as Special Advisers – to serve him or her.

But Special Advisers are simply advisers. They have no line management responsibilities in respect of the staff of the Department. Besides this tiny number of Special Advisers, Government Departments are run by civil servants who are recruited in a totally open manner and serve governments of any political parties. The independence and professionalism of the British civil service are fundamental features of the British political system.

- **Devolved Government**

The UK has a devolved system of government, but this is categorically not a system of federal government such as in the United States or Australia, partly because less than a fifth of the citizens of the UK are covered the three bodies in question and partly because the three bodies themselves have different powers from one another.

Sub-section3: Government in parliament

A key principle of the British Constitution is that the government is responsible to Parliament. This is called responsible government.

Britain is a constitutional monarchy in which the reigning monarch (that is, the King or Queen who is the Head of State at any given time) does not make any open political decisions. All political decisions are taken by the government and Parliament. This constitutional state of affairs is the result of a long history of constraining and reducing the political power of the monarch, beginning with the Magna Carta in 1215.

Under the British system, the government is required by convention and for practical reasons to maintain the

confidence of the House of Commons. It requires the support of the House of Commons for the maintenance of supply (by voting through the government's budgets) and to pass primary legislation.

By convention, if the government loses the confidence of the House of Commons it must either resign or a General Election is held. The support of the Lords, while useful to the government in getting its legislation passed without delay, is not vital. A government is not required to resign even if it loses the confidence of the Lords and is defeated in key votes in that House. The House of Commons is thus the Responsible house.

The prime minister is held to account during Prime Minister's Question Time (PMQs) which provides an opportunity for MPs from all parties to question the PM on any subject. There are also departmental questions when ministers answer questions relating to their specific departmental brief. Unlike PMQs both the cabinet ministers for the department and junior ministers within the department may answer on behalf of the government, depending on the topic of the question.

During debates on legislation proposed by the government, ministers—usually with departmental responsibility for the bill—will lead the debate for the government and respond to points made by MPs or Lords.

Committees of both the House of Commons and House of Lords hold the government to account scrutinize its work and examine in detail proposals for legislation. Ministers appear before committees to give evidence and answer questions.

Government ministers are also required by convention and the Ministerial Code, when Parliament is sitting, to make major statements regarding government policy or issues of national importance to Parliament. This allows MPs or Lords to question the government on the statement.

When the government instead chooses to make announcements first outside Parliament, it is often the subject of significant criticism from MPs and the Speaker of the House of Commons.

Vocabulary of

(chapter 2 – section 1)

A

Abide

يلبث

Abolished in

أُلغيت في

Absolute monarchy

الملكية المطلقة

Accountability

مساءلة

Accountable to Parliament

خاضع للمساءلة أمام البرلمان

Anniversary

ذكرى سنوية

Announcements

إعلانات

Approval

موافقة

Assassinated

أُغتيل

B

Bicameral nature

ذات مجلسين

Bill of Rights

قانون الحقوق

Boroughs

الأقسام الإدارية

C

Ceremonial

شرفي

Chairs the Cabinet

يرأس مجلس الوزراء

Chancellor of the Exchequer

وزير الخزانة

Citizen rights

حقوق المواطن

Civil service

خدمة مدنية

Classical political theory

النظرية السياسية الكلاسيكية

Coalition governments

حكومات ائتلافية

Coined by

تمت صياغته بواسطة

Collective responsibility

مسؤولية جماعية

Command a majority of MPs

يقود حزب الأغلبية في مجلس النواب

Commissar officers

موظفون مفوضون

Conclude peace with

إبرام السلام مع

Confidence and supply

agreement

اتفاق الثقة والتوريد

Conquering

قهر

Consensus

إجماع

Consent of Parliament

موافقة البرلمان

Conservatives

حزب المحافظين

Constitutional monarchy

الملكية الدستورية

Constraining

تقييد

Continuity

استمرارية

Country residence

بلد الإقامة

Couple of

زوجين

Cousin

ابن عم

Crown

تاج



Debates

مناقشات

Declare war

إعلان الحرب

Defeated

هُزِم

Defense Council

مجلس الدفاع

Democratic Unionist Party

الحزب الديمقراطي الاتحادي

Deploy the Armed Forces

overseas

نشر القوات المسلحة في الخارج

Deputy Prime Minister

نائب الوزير الأول

Devolved government

حكومة متطورة

Diplomats

دبلوماسيون

Dismiss

يرفض

Domestic powers

السلطات المحلية أو الداخلية

Dutch revolution

الثورة الهولندية

E

Elite

نخبة

English deliberations

المدىالات الإنجليزية

Enlightenment thinker

Montesquieu

المفكر مونتسكيو

Executive authority

سلطة تنفيذية

F

Fear of retribution

الخوف من القصاص

First statement

البيان الأول

Foreign and Commonwealth
office

وزارة الخارجية وشؤون الكومنولث

Foreign power

السلطات الخارجية

Foreign Secretary

وزير الخارجية

Forerunners of the

Conservatives

رعاة المحافظين

Forerunners of the Liberals

رعاة الليبراليين

Franchise

امتياز

G

Gathering

جَمَعَ

General Election

الانتخاب العام

Glorious Revolution

ثورة مجيدة

Golden Bull of just

الثور الذهبي فقط
Government expenditure
الإنفاق الحكومي
Government's budgets
موازنة الحكومة
Grant honors
منح الشرف
Grant
يمنح
H
Held on
عُقدت في
Hereditary
وراثي
Hidden influence
تأثير خفي
Hold the government to
account
عقد محاسبة الحكومة
History of British political
system
تاريخ النظام السياسي البريطاني
Home Secretary
وزير الداخلية

Hung parliament

تعليق أعمال البرلمان

I

Immigration

هجرة

In theory

نظرياً

Initiative or important
statement

مبادرة أو بيان مهم

Instead of

بدلاً من

Insular

Invaded

غزت

Irish parliament

البرلمان الأيرلندي

Ironical twists of history

سخرية تقلبات الدهر

Is granted to

تُمنح لـ

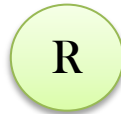
K

Key votes

	أصوات رئيسة
King of Scots	ملك الاسكتلنديين
L	
Liberal Democrats	الديمقراطيين الليبراليين
Little-known provision	نص غير معروف
Long-standing custom	عُرف ممتد لفترة طويلة
Lucrative	مُربح
M	
Middle-ranking minister	وزير متوسط المستوى
Milestones	معالم
Millennium	ألفية
Minister of State	رئيس الولاية
Ministerial Code	القانون الوزاري
Ministry of Finance	

	وزارة المالية
Ministry of Foreign Affairs	وزارة الشؤون الخارجية
Ministry of the Interior	وزارة الداخلية
Minority	أقلية
Monarch's spouse	زوجة الملك
N	
Neat	أنيق
Next in line to the throne	التالي في سلسلة العرش
No confidence	انعدام الثقة
Not limited to	لا تقتصر على
O	
Obey	يحتزم
Occasionally	من حين لآخر
Officers of the Crown	

موظفي التاج
Official residence
المقر الرسمي
Opportunity
فرصة
Orange take the throne
أخذ العرش
 P
Parliamentary systems
الأنظمة البرلمانية
Passports to declaration
of war
إشارة إعلان الحرب
Petition
عريضة
Plenty of
كثير من
Political advisers
مستشارين سياسيين
Political entity
الكيان السياسي
Powerful figure
شخصية قوية
Pragmatic

واقعي
Prerogative of mercy
امتياز الرحمة
Prime minister
الوزير الأول
Primogeniture principles
Private interests
اهتمامات خاصة
Privy Council
مجلس الملكة الخاص
Promptly decamped
Proposal
اقتراحات
Proud
فخور
 R
Raising of
رفع
Ratify and make treaties
التصديق على المعاهدات
وإبرامها
Rebelled in

تمرد	Respond
Recognize states	رد
الاعتراف بالدول	Responsible government
Reconciled	حكومة مسؤولة
التوفيق	Restoration of the Monarchy
Recruited	استعادة النظام الملكي
تجنيد	Resulting in
Referendum	مما يسبب
استفتاء	Rotten
Regal pickings	فاسد
المخلوقات الملكية	Royal Assent to bills
Regionalism	الموافقة الملكية على القوانين
الإقليمية	Royal Charter
Reigning monarch	الميثاق الملكي
حكم الملك	Royal Family
Remains neutral in	العائلة الملكية
political affairs	Royal Prerogative
يظل محايداً في الأمور السياسية	Run Government
Remote control	departments
جهاز التحكم	يدير الإدارات الحكومية
Representative assembly	Running Scotland
الجمعية التمثيلية	أسكتلندا الحالية
Resign	
يستقيل	

S

Satisfied

راض

Scheme

مخطط

Scottish National Party

الحزب الوطني الاسكتلندي

Scrutinize

يفحص أو يدقق النظر في

Secretary of State

وزير الخارجية

Senior royals

كبار السن

Separation of powers

فصل السلطات

Significant criticism

انتقادات حادة

Snap election

انتخابات مبكرة

Snappy name

اسم قبيح

Statutory authority

السلطة القانونية

Stays above party politics

يسمو على السياسات الحزبية

Strict division

تقسيم صارم أو فصل جامد

Strictly confidential

في سرية تامة

Struggle to shift

النضال من أجل التغيير

Struggled

قاوم

Subject of an appearance

مسألة المظهر

Subtle

فصيح

Summoned

استدعى

T

Taxes

الضرائب

Template

قالب أو نموذج

The cabinet

مجلس الوزراء

The executive power

السلطة التنفيذية

The Home Office

وزارة الداخلية

The Home Secretary

وزير الداخلية

The President

الرئيس

The Treasury

الخزينة

To tax his subjects

ضريبة رعاياه

To explicit

يُصرح

Tories

حزب المحافظين

Traditionally

تقليدياً

Transparency

الشفافية



Ultimately

في النهاية

Uncodified British constitution

الدستور البريطاني غير المدون

Uniquely

فريد

Unpopulated

غير مؤهل



Via

بواسطة



Westminster

Whigs

اليمنيون

Whitehall

الحكومة البريطانية

Section 2

The legislative power

The British Parliament is often called Westminster because it is housed in a distinguished building in central London called the Palace of Westminster which stands out because of the clock tower at the south end (this is the Elizabeth Tower and it houses Big Ben) and the tower with a flag at the other end (this is the Victoria Tower). Although this is a grand building, it is in an appalling state of repair and there are currently discussions about a major project of refurbishment which will probably begin in 2020 and require Parliament to relocate to other buildings in central London.

The British Parliament - like that of larger countries - is bicameral, that is there are two houses or chambers. One tends to find unicameral legislatures in smaller nations such as Denmark, Sweden, Finland, Greece, Israel and New Zealand, although China and Iran are two larger nations with a single legislative chamber (but neither of these countries is a democracy).

Parliament is split into two houses: the House of Lords and the House of Commons. The House of Commons is the lower house and is the more powerful. The House of Lords is the upper house and although it can vote to amend proposed laws, the House of Commons can usually vote to overrule its amendments.

Although the House of Lords can introduce bills, most important laws are introduced in the House of Commons – and most of those are introduced by the government, which schedules the vast majority of parliamentary time in the Commons. Parliamentary time is essential for bills to be passed into law, because they must pass through a number of readings before becoming law.

Prior to introducing a bill, the government may run a public consultation to solicit feedback from the public and businesses, and often may have already introduced and discussed the policy in the Queen's Speech, or in an election manifesto or party platform.

Sub-section1: The House of Commons

This is the lower chamber but the one with the most authority.

- The House of Commons sits each week day for about half of the weeks of the year. The precise hours of sitting are:

- Monday 2.30 - 10.30 pm
- Tuesday 2.30 - 10.30 pm
- Wednesday 11.30 am - 7.30 pm
- Thursday 10.30 am - 6.30 pm
- Friday 9.30 am - 3 pm

- The Commons is chaired by the Speaker. Unlike the Speaker in the US House of Representatives, the post is non-political and indeed, by convention, the political parties do not contest the Parliamentary constituency held by the Speaker.

- The House of Commons currently comprises 650 Members of Parliament (the number varies slightly from time to time to reflect population change).

This is a large legislature by international standards. For instance, the House of Representatives in the USA has 435 seats but, of course, each of the 50 US states has its own legislature. Before the General Election of 2010, the Conservative Party said that it wished to reduce the number of Commons seats by around 10% (65 seats) and the Liberal

Democrats said that the Commons should be reduced by 150 MPs. The Coalition Government of 2010-2015 passed legislation to reduce the number from 650 to 600, as part of a wider change to the number and size of constituencies, but Parliament blocked the process of redrawing boundaries that is necessary before a General Election can be held with fewer seats.

- Rather oddly (but deliberately), there is insufficient seating capacity in the chamber of the House of Commons for all the MPs. Members do not sit at desks (like most legislatures) but on long, green-covered benches and there is only seating capacity for 437 MPs out of the total of 650. The origin of this strange arrangement is that the Commons first home was the medieval St Stephen's Chapel in the Palace of Westminster which could only fit around 400 Members.

- Equally odd is that Members vote (votes are called 'divisions') by physically walking through one of the two lobbies which run along the side of the Commons chamber. These lobbies are the 'aye' lobby and the 'nay' lobby.

This archaic procedure means that votes take a long time to conduct and it is not unknown for a member accidentally to

walk into the wrong lobby. The votes are counted by 'tellers' who then return to the chamber to announce the numbers to the Speaker.

- Each member in the House of Commons represents a geographical constituency. Typically a constituency would have around 60,000-80,000 voters, depending mainly on whether it is an urban or rural constituency. The largest constituency in the country is the Isle of Wight with around 110,000 electors, while the smallest is Na h-Eileanan an Iar (formerly known as the Western Isles) with an electorate of only around 22,000. The Coalition Government of 2010-2015 intended to make the size of constituencies more equal in terms of electors, but so far the legislation has not been implemented.

- Every citizen aged 18 or over can vote once in the constituency in which they live. Voting is not compulsory (as it is in Australia). In the last General Election of May 2015, 66.1% of the electorate actually voted. Most democratic countries use a method of election called proportional representation (PR) which means that there is a reasonable correlation between the percentage of votes cast

for a particular political party and the number of seats or representatives won by that party.

However, much of the Anglo-Saxon world - the USA, Canada, and the UK but not Australia or New Zealand - uses a method of election called the simple majority system or 'first past the post' (FPTP). In this system, the country is divided into a number of constituencies each with a single member and the party that wins the largest number of votes in each constituency wins that constituency regardless of the proportion of the vote secured. The simple majority system of election tends to under-represent less successful political parties and to maximize the chance of the most popular political party winning a majority of seats nationwide even if it does not win a majority of the votes nationwide.

- Until recently, in the UK (unlike many countries), there was not fixed term parliaments. A General Election - that is, a nationwide election for all 650 seats - was held when the Prime Minister called it, but the election could not be more than five years after the last one and it was usually around four years after the last one.

The Coalition Government of 2010-2015 passed legislation to provide for fixed five-year parliaments which meant that the next General Election was scheduled for May 2020. However, the Prime Minister Theresa May was able to call a snap General Election for 8 June 2017 by winning a Commons vote of more than two-thirds to activate provision for an early election in the Fixed Term Parliaments Act.

The result of the last General Election was as follows:

- . Conservative Party: 318 seats (down 13) with 42.45% of the vote.
- . Labor Party: 262 seats (up 32) with 39.99% of the vote
- . Scottish National Party: 35 seats (down 19) with 3.04% of the vote
- . Liberal Democrat Party: 12 seats (up 4) with 7.4% of the vote
- . Other parties: 22 seats (down 1) with 7.1% of the vote

. Total turnout nationwide was 69% - the highest since the election of 1997⁽¹⁾.

Sub-section2: The House of Lords

This is the upper chamber but the one with less authority. Its main roles are to revise legislation and keep a check on Government by scrutinizing its activities. Since 1911, its power to block "money bills" is limited to one month and its power to block other bills is limited to one session, so ultimately it cannot block the will of the House of Commons. Furthermore, since 1945, there has been the Salisbury Convention that the House of Lords will not oppose a measure that was specifically mentioned in the last election manifesto of the political party forming the Government.

The House of Lords is an utterly bizarre institution that has no parallel anywhere in the democratic world. The explanation for the unusual nature of the Lords goes back to

(1) - Note 1: In practice, the Speaker is not counted against any political party because he or she is required to be neutral and therefore traditionally he or she is not opposed by other parties in the election.

Note 2: In Northern Ireland, Sinn Fein - which won 7 constituencies in 2017 - does not take its seats.

the beginning of this essay: the British political system has evolved very slowly and peacefully and it is not totally logical or democratic.

- There is no fixed number of members in the House of Lords, but currently there are 826 members - many more than in the House of Commons, more than the combined houses of the American Congress or the Indian Parliament (although both of these nations have a federal system), and the second biggest legislative body in the world (after the Chinese National People's Congress which is effectively a rubber-stamping body). The number was actually halved to 666 in the reforms of 1999 but, since then, successive Prime Ministers (especially David Cameron) have been adding new life peers much faster than members are dying. Indeed the last (Coalition) Government added over 100. Ironically the size of the House of Lords continues to rise at the same time as the House of Commons has legislated to reduce its size.

- Historically most members of the House of Lords have been what we called hereditary peers. This meant that years ago a king or queen nominated a member of the aristocracy to be a member of the House and, since then, the right to sit

in the House has passed through the family from generation to generation. Clearly this is totally undemocratic and the last Labor Government abolished the right of all but 92 of these hereditary peers to sit in the House.

- Almost all the other members of today's House of Lords are what we call life peers. This means that they have been chosen by the Queen, on the advice of the Government, to sit in the House for as long as they live, but afterwards no member of their family has the right to sit in the House. Almost 200 are former Members of Parliament. Others are distinguished figures in fields such as education, health and social policy.

- A small number of other members - 26 - are archbishops and bishops of the Church of England. The archbishops of Canterbury and York and the bishops of London, Durham and Winchester automatically take seats in the Lords, while the further 21 seats are allocated on the basis of length of service. Iran is the only other country in the world that provides automatic seats for senior religious figures in its legislature.

- There is no retirement age for peers and the average age is an incredible 69.
- There is nowhere near sufficient seating capacity in the chamber of the House of Lords for all the peers. Members do not sit at desks (like most legislatures) but on long, red-covered benches and there is only seating capacity for 230 peers out of the total of over 800. Even on a 'whipped' vote, a couple of hundred peers will not turn up.
- House of Lords reform is unfinished business. The Parliament Act of 1911 first raised the prospect of an elected upper house but it has still not happened. There is a cross-party consensus that it should become a mainly elected body, although there is as yet no agreement on the details of the next stage of reform.

Sub-section3: Some distinguishing features of the British Parliamentary system

Much of the work of Parliament is done in Committees rather than on the floor of the chamber.

The House of Commons has two types of committee:

1- Select Committees are appointed for the lifetime of a Parliament, 'shadow' the work of a particular Government Department, conduct investigations, receive written and oral evidence, and issue reports. Membership is made up only of backbenchers and reflects proportionately the balance of the parties in the Commons.

2- General Committees (previously known as Standing Committees) are temporary bodies, most of them Public Bill Committees formed to examine the detail of a particular piece of proposed legislation and consider amendments to the Bill. Membership includes Government and Opposition spoke persons on the subject matter of the Bill and overall membership reflects proportionately the balance of the parties in the Commons.

The House of Lords only has Select Committees (it does not need Standing Committees because the details of Bills are considered on the floor of the chamber).

Finally there are some Joint Committees of the Commons and the Lords.

Discussion and debate involve quite a gladiatorial or confrontational approach. This is reflected in the physical

shape of the chambers. Whereas most legislatures are semi-circular, both the House of Commons and the House of Lords are rectangular with the Government party sitting on one side and the Opposition parties sitting on the other side.

The House of Lords alone has cross-benches for independent peers. It is quite normal for speakers in debates to be interrupted by other members, especially of another party, and, in the Commons, cheering and jeering is a regular occurrence.

In the Commons, there is a Prime Minister's Question (PMQ) Time for 30 minutes at 12 noon every Wednesday. Questions can be asked on any subject. This is frequently a heated affair with the Leader of the Opposition trying to embarrass the Prime Minister and it is the one part of the week's proceedings guaranteed to attract the interest of the media. In his book "A Journey", former Prime Minister Tony Blair wrote: "PMQs was the most nerve-wracking, discombobulating, nail-biting, bowel-moving, terror-inspiring, courage-draining experience in my prime ministerial life, without question."

. The Government is normally assured of a majority in the House of Commons for any measure or vote. This is mainly because in the Commons there is a strong 'whipping' system in which political parties tell their members how to vote on every significant division though a weekly set of instructions. The importance of actually being present to vote in the manner instructed depends on whether the 'whip' is one-line, two-line or - the most serious - three-line. Even when there is a rebellion by members of the majority party, the Government usually obtains its wish because all Ministers and their Parliamentary Private Secretaries (PPSs) are required to vote for the Government or resign their Ministerial or PPS position. This is called 'the payroll vote' (although PPS are not actually paid to be a PPS) and currently around 120 MPs or 22% of the Commons make up this block vote.

. The official record of the proceedings of the Commons and the Lords is called Hansard. The press and broadcasters are present all the time and live audio and visual broadcasting can take place at any time.

Sub-section4: The Legislative Process

In the British political system, almost all legislation is proposed by the Government and much of it comes from promises made in the manifesto of the relevant political party at the last election. At the beginning of each annual session of the Parliament, the main Bills to be considered are announced by the Queen in a speech opening that year's session of Parliament.

All legislation has to be approved by both Houses of Parliament.

In each House of Parliament, a proposed piece of legislation - called a Bill - goes through the following stages:

(a) First Reading - the Bill is introduced with simply a reading by a Minister of the long title of the Bill

(b) Second Reading - the general principles of the Bill are debated by all the members of the House and a formal vote is taken

(c) Committee Stage - each clause and schedule of the Bill, plus amendments to them and any new clauses or schedules, is examined in detail, in the Commons by a small, specially

chosen group of members meeting as Public Bill Committee or in the Lords by the members as a whole on the floor of the House

(d) Report Stage - the changes made to the Bill in the Committee are reported to and debated by the whole House which is invited to consider the Bill as a whole, approve the changes by the Committee, and consider any further proposed changes that might be suggested.

(e) Third Reading - the final version of the Bill is considered by the whole House in a short debate (in the Commons without the facility for further amendments)

(f) Royal Assent - the Crown gives assent to the Bill which then becomes an Act, the provisions becoming law either immediately or at a date specified in the Act or at a date specified by what is called a Commencement Order

Several points are worth noting about the legislative process:

. Under normal circumstances, all these stages must be completed in both Houses in one session of Parliament; otherwise the process must begin all over again.

. Debates on most Bills are timetabled through a programmed motion (when Government and Opposition agree) or an allocation of time motion which is popularly known as a 'guillotine' motion (when Government and Opposition do not agree).

. As well as almost all legislation coming from the Government, almost all successful amendments originate from the Government.

. Ultimately, exactly the same text of a Bill must be approved by both Houses of Parliament. If the House of Lords approve an amendment to a Bill from the House of Commons, then the Bill returns to the Commons for further consideration. Usually the Lords amendment is not accepted by the Commons which is, after all, the elected chamber with the democratic mandate. If the Lords insist on passing the amendment - or something like it - again, then the process of the Bill passing back and forth between the two Houses is known colloquially as "Ping-Pong".

. The House of Lords has much more limited legislative powers than the House of Commons. Money Bills can only be initiated in the Commons and the Lords can only reject

legislation from the Commons for one year. Furthermore there is a convention - called the Salisbury Convention - that the Lords do not block legislation in fulfillment of the election manifesto of the elected Government.

This process of enacting legislation applies to what is called primary legislation which starts as a Bill and finally become an Act. Another type of legislation is called secondary (or delegated) legislation which is usually more detailed. The power to make specific pieces of secondary legislation comes from specific pieces of primary legislation. A piece of secondary legislation - formally called an Order-in-Council - is not even debated unless it is particularly controversial and then it cannot be amended but simply approved or opposed. In practice, the last time Parliament rejected a piece of secondary legislation was in 1979.

In recent years, the number of Bills passed by Parliament has remained broadly constant at around 50 a year. However, these Bills have become longer and, in the past few years, about 3,000 pages of primary legislation, as well as around 13,000 pages of secondary legislation, have been processed by Parliament. The reality, therefore, is that Parliament

provides increasingly less scrutiny of a lot of legislation. This situation could become even worse as Parliament attempts to deal with all the legislation needed to take the UK out of the European Union (Brexit).

Vocabulary of
(Chapter 2- Section 2)

Blocked

رُفض

A

Amendments

تعديلات

Annual session

دور الانعقاد السنوي

Appalling state of repair

حالة هائلة من الإصلاح

Archaic procedure

إجراء قديم

Archbishops

مطارنة

Aristocracy

ارستقراطية

Attempts

محاولات

Audio and visual

broadcasting

البث السمعي والبصري

B

Bishops

الأساقفة

Bowel-moving

حركة الأمعاء

Broadcasters

البث

Broadly constant

ثابت على نطاق واسع

C

Chaired by

برئاسة

Cheering and jeering

التهافتات

Colloquially

بالعامية

Commencement Order

إشارة البدء

Committee Stage

مرحلة العرض على اللجنة

Compulsory

إلزامي

Confrontational

مواجهة

Contest

Controversial

مثيرة للجدل

Couple of hundred peers

بضع مئات من الأقران

Courage-draining

استنزاف الشجاعة

D

Debated by

تمت مناقشتها بواسطة

Deliberately

عن عمد

Democratic mandate

Discombobulating

E

Election manifesto

الانتخابات

Elizabeth Tower

برج اليزابيث

Embarrass

إرباك

Essay

F

Facility for

مُرفق لـ

Flag

علم

Fulfillment

تحقيق

Furthermore

علاوة على ذلك

G

General Committees

لجان عامة

Gladiatorial

Grand building

مبنى قديم

Guillotine motion

حركة المقصلة

H

Heated affair

أحداث ساخنة

Hereditary peers

الورثة

I

Incredible

لا يُصدق

Insufficient seating
capacity

عدم كفاية سعة الجلوس

Interest of the media

اهتمام وسائل الإعلام

J

Joint Committees

لجان مشتركة

L

Leader of the Opposition

زعيم المعارضة

Life peers

أقران الحياة أو أصدقاء العمر

M

Money bills

القوانين المالية

N

Nail-biting

قضم الأظافر

Nationwide

على الصعيد الوطني

Nerve-wracking

محطمة للأعصاب

O

Opposition agree

توافق المعارضة

Order-in-Council

أمر المجلس

P

Parliamentary
constituency

الدائرة البرلمانية

Parliamentary time

وقت البرلمان

Party platform

حزب المنصة

Press

صحافة

Processed by

يتم معالجتها بواسطة

Proportional

representation

تمثيل نسبي

Public Bill Committee

لجنة القانون العام

Public consultation

الاستفتاء أو التشاور العام

Q

Queen's Speech

خطاب الملكة

R

Raised the prospect

أثارت احتمالية

Rather oddly

بدلاً من الغريب

Reality

واقع

Rebellion

تمرد

Redrawing boundaries

إعادة رسم الحدود

Reflect population change

تعكس التغير السكاني

Refurbishment

تجديد

Regular occurrence

حدث منظم

Relocate

نقل

Revise legislation

إعادة النظر في التشريع

Rubber-stamping body

جسم مطاطي

S

Salisbury Convention

اتفاقية سالسبوري

Schedule

جدول

Scrutiny

فحص دقيق

Select Committees

لجان محددة

Shadow the work

في ظل العمل

Simple majority system or
'first past the post' (FPTP)

نظام الأغلبية البسيطة

Solicit feedback

التماس رد الفعل

Speech opening that
year's session of
parliament

خطاب الجلسة الافتتاحية للبرلمان

هذا العام

Strange arrangement

ترتيب غريب

T

Tellers

الأصوات

Terror-inspiring

الإرهاب الملهم

The legislative power

السلطة التشريعية

The Legislative Process

العملية التشريعية

The payroll vote

Timetabled

جدول زمني

Turn up

عودة إلى الخلف

Turnout nationwide

الإقبال على الصعيد الوطني

U

Ultimately

في النهاية

Until recently

حتى الآن

Upper chamber

المجلس الأعلى

Urban or rural

constituency

المناطق الحضرية أو الريفية

Utterly bizarre

غريبة تماماً

V

Vast majority

الغالبية العظمى

W

Westminster

Whipped vote

Whipping system

نظام الجلد

Section 3

The judicial power

The British judicial branch is extremely complex. Unlike most countries which operate a single system of law, the UK operates three separate legal systems: one for England and Wales, one for Scotland, and one for Northern Ireland. Although bound by similar principles, these systems differ in form and the manner of operation.

The Lord Chancellor's office - which for 1,400 years maintained the judiciary - has now been replaced by the Ministry for Justice which administers the court system.

A Judicial Appointments Commission has been set up to advise the head of the Ministry of Justice on the appointment of new judges.

The United Kingdom does not have a single unified legal system—England and Wales have one system, Scotland another, and Northern Ireland a third. There are exceptions to this rule; for example in immigration law, the Asylum and Immigration Tribunal's jurisdiction covers the whole of the United Kingdom, while in employment law there is a single

system of employment tribunals for England, Wales, and Scotland but not Northern Ireland.

Additionally, the Military Court Service has jurisdiction over all members of the armed forces of the United Kingdom in relation to offences against military law.

Subsection1; The Supreme Court

The Appellate Committee of the House of Lords - previously the highest court in the land - was, by way of the Constitutional Reform Act 2005, replaced by the Supreme Court in October 2009 to allow the judiciary to operate in total independence from the Government. The Supreme Court is now the ultimate court of appeal in all legal matters other than criminal cases in Scotland. It consists of 12 judges and sits in the Middlesex Guildhall in Parliament Square.

British judges are appointed through an independent process and operate totally independently of government. They can find that a Government Minister has acted against a law of the UK Parliament or a Directive of the European Union or against the European Convention and require the Minister to change his or her actions.

The Constitutional Reform Act 2005 made provision for the creation of a new Supreme Court for the United Kingdom.

There had, in recent years, been mounting calls for the creation of a new free-standing Supreme Court separating the highest appeal court from the second house of Parliament, and removing the Lords of Appeal in Ordinary from the legislature. On 12 June 2003 the Government announced its intention to do so.

Before the Supreme Court was created, the 12 most senior judges – the Lords of Appeal in Ordinary, or Law Lords as they were often called – sat in the House of Lords.

The House of Lords was the highest court in the land – the supreme court of appeal. It acted as the final court on points of law for the whole of the United Kingdom in civil cases and for England, Wales and Northern Ireland in criminal cases. Its decisions bound all courts below.

As members of the House of Lords, the judges not only heard cases, but were also able to become involved in debating and the subsequent enactment of Government legislation (although, in practice, they rarely did so).

The creation of a new Supreme Court means that the most senior judges are now entirely separate from the

Parliamentary process. It is important to be aware that the new Supreme Court is a United Kingdom body, legally separate from the England and Wales courts as it is also the Supreme Court of both Scotland and Northern Ireland⁽¹⁾.

As such, it falls outside of the remit of the Lord Chief Justice of England and Wales in his role as head of the judiciary of England and Wales.

The new Supreme Court opened for business in October 2009, at the start of the legal year.

*** Roles of The Supreme Court**

1 - The Supreme Court, as well as being the final court of appeal, plays an important role in the development of United Kingdom law.

(1)- The Supreme Court hears appeals from the following courts in each jurisdiction:

- England and Wales

- The Court of Appeal, Civil Division
- The Court of Appeal, Criminal Division
- (in some limited cases) the High Court

- Scotland

- The Court of Session.

- Northern Ireland

- The Court of Appeal in Northern Ireland
- (In some limited cases) the High Court.

2 - As an appeal court, The Supreme Court cannot consider a case unless a relevant order has been made in a lower court.

3 - The Supreme Court is the final court of appeal for all United Kingdom civil cases, and criminal cases from England, Wales and Northern Ireland.

4 - It hears appeals on arguable points of law of general public importance.

5 - It concentrates on cases of the greatest public and constitutional importance.

6 - It maintains and develops the role of the highest court in the United Kingdom as a leader in the common law world.

Subsection2; Senior Courts of England and Wales

The Senior Courts of England and Wales were originally created by the Judicature Acts as the "Supreme Court of Judicature". It was renamed the "Supreme Court of England and Wales" in 1981, and again to the "Senior Courts of England and Wales" by the Constitutional Reform Act 2005

(to distinguish it from the new Supreme Court of the United Kingdom).

- It consists of the following courts:

(A) Court of Appeal

The Court of Appeal deals only with appeals from other courts or tribunals. The Court of Appeal consists of two divisions: the Civil Division hears appeals from the High Court and County Court and certain superior tribunals, while the Criminal Division may only hear appeals from the Crown Court connected with a trial on indictment (i.e., for a serious offence). Its decisions are binding on all court, including itself.

(B) High Court of Justice

The High Court of Justice functions both as a civil court of first instance and a criminal and civil appellate court for cases from the subordinate courts. It consists of three divisions: the Queen's Bench, the Chancery and the Family divisions.

The divisions of the High Court are not separate courts, but have somewhat separate procedures and practices adapted to

their purposes. Although particular kinds of cases will be assigned to each division depending on their subject matter, each division may exercise the jurisdiction of the High Court.

However, beginning proceedings in the wrong division may result in a costs penalty.

(C) Crown Court

The Crown Court is a criminal court of both original and appellate jurisdiction which in addition handles a limited amount of civil business both at first instance and on appeal.

It was established by the Courts Act 1971. It replaced the assizes whereby High Court judges would periodically travel around the country hearing cases, and quarter sessions which were periodic county courts.

The Old Bailey is the unofficial name of London's most famous criminal court, which is now part of the Crown Court. Its official name is the "Central Criminal Court". The Crown Court also hears appeals from magistrates' courts.

The Crown Court is the only court in England and Wales that has the jurisdiction to try cases on indictment and when

exercising such a role it is a superior court in that its judgments cannot be reviewed by the Administrative Court of the Queen's Bench Division of the High Court.

Subsection3; Subordinate courts of England and Wales

The most common subordinate courts in England and Wales are:

(A) County Court

The County Court is a national court with a purely civil jurisdiction, sitting in 92 different towns and cities across England and Wales. As from 22 April 2014 there has been a single County Court for England and Wales where previously there was a series of courts.

The County Court is so named after the ancient sheriff's court held in each county, but it has no connection with it nor indeed was the jurisdiction of the county courts based on counties.

A County Court hearing is presided over by either a district or circuit judge and, except in a small minority of cases such as civil actions against the police, the judge sits alone as trier

of fact and law without assistance from a jury. The old county courts' divorce and family jurisdiction was passed on 22 April 2014 to the single Family Court.

Until unification in 2014, county courts were local courts in the sense that each one has an area over which certain kinds of jurisdiction, for example, proceedings for possession of land had to be started in the county court in whose district the property lay, but in general any county court in England and Wales could hear any action and claims were frequently transferred from court to court.

(B) Family Court

The Family Court is a national Court and has jurisdiction to hear all Family cases in England and Wales.

Local jurisdictional boundaries have disappeared and there is only one single jurisdiction for all family proceedings. The Family Court sits at many locations in England and Wales, and it usually sits at the County Courts and Magistrates Courts where family work was previously heard by county courts or family proceedings courts.

Family Court judges are now more categories of judges who will be eligible to hear family cases including lay magistrates, district judges, circuit judges, and High Court judges from the Family Division.

(C) Magistrates' and youth courts

Magistrates' courts are the criminal court where all criminal proceedings are commenced. They are presided over by a bench of lay magistrates (a.k.a. justices of the peace), or a legally trained district judge (formerly known as a stipendiary magistrate), sitting in each local justice area. There are no juries. They have jurisdiction to hear minor criminal cases, as well as certain licensing appeals.

Youth courts are run on similar lines to adult magistrates' courts but deal with offenders aged between the ages of ten and seventeen inclusive. Youth courts are presided over by a specially trained subset of experienced adult magistrates or a district judge.

Youth magistrates have a wider catalogue of disposals available to them for dealing with young offenders and often hear more serious cases against youths (which for adults would normally be dealt with by the Crown Court).

Youth courts are not open to the public for observation, only the parties involved in a case being admitted.

Prior to the enactment of the Crime and Courts Act 2013, some magistrates' courts were also a family proceedings court and heard Family law cases including care cases and they had the power to make adoption orders. Family cases is no longer heard by the Magistrates' courts, and instead be heard by the single Family Court established by the 2013 Act.

Subsection4; Juries in England and Wales

- **History**

The English jury has its roots in two institutions that date from before the Norman Conquest in 1066.

The inquest, as a means of settling a fact, had developed in Scandinavia and the Carolingian Empire while Anglo-Saxon law had used a "jury of accusation" to establish the strength of the allegation against a criminal suspect. In the latter case, the jury were not triers of fact and, if the accusation was seen as posing a case to answer, guilt or innocence were established by oath, often in the form of compurgation, or trial by ordeal.

During the 11th and 12th centuries, juries were sworn to decide property disputes but it was the Roman Catholic Church's 1215 withdrawal of support for trial by ordeal that necessitated the development of the jury in its modern form.

*** Criminal juries**

Juries are summoned for criminal trials in the Crown Court where the offence is an indictable offence or an offence triable either way that has been sent to the Crown Court after examination by magistrates. Magistrates have the power to send any offence triable either way to the Crown Court but, even if they elect to try the case themselves, the accused retains the right to elect for a Crown Court trial with a jury. Summary offences are tried by magistrates and there is no right of Crown Court trial by jury. During the 21st century some exceptions to jury trial in the Crown Court have been developed.

Trial without a jury

Crown Court trial without a jury is permitted in cases of suspected jury tampering where there is evidence of a "real and present danger" and, despite the possibility of police protection, there is a substantial likelihood of tampering, and a trial without a jury is in the interests of justice. The first

such prosecution application was made in February 2008. The first criminal trial in a crown court without a jury was approved in 2009.

There are also provisions under the Domestic Violence, Crime and Victims Act 2004, ss.17–20 to try defendants accused of domestic violence on sample counts and, on conviction, for the remainder of the counts to be tried by a judge alone. These provisions came into force on 8 January 2007.

If the defendant pleads *autrefois*, the judge now decides the matter without a jury.

Between 1973 and 2007 trials in Northern Ireland could be held without a jury in special courts known as Dip lock courts.

*** Civil juries**

All common law civil cases were tried by jury up to the introduction of juryless trials in the new county courts in 1846. The perceived success of this system, together with increasing recognition of the integrity of judges and the professionalization of legal institutions, meant that, when the Common Law Procedure Act 1854 gave litigants in

the Queen's Bench the option of trial by judge alone, there was a steady uptake.

Over the next eighty years, the use of juries in civil trials steadily declined.

In 1933 the Administration of Justice (Miscellaneous Provisions) Act 1933, guaranteed the right of jury trial in the Queen's Bench Division.

The 1933 Act also provided that: "but, save as aforesaid, any action to be tried in that Division may, in the discretion of the court or a judge, be ordered to be tried either with or without a jury." The Act brought a de facto end to civil jury trials in England and Wales save for the causes where the right was guaranteed.

In *Ward v James*, Lord Denning, delivering the judgment of the Court of Appeal, held that personal injury cases were unsuitable for jury trials owing to the technical expertise and experience needed in assessing damages. In *Singh v. London Underground Ltd* (1990), a litigant sought a jury trial on a case arising from the King's Cross fire but was refused owing to the technical nature of the case. In 1998 less than 1% of civil trials in England and Wales were jury trials and these were principally defamation cases.

Section 69 of the Senior Courts Act 1981, which replaced section. 6 of the 1933 Act in respect of High Court trials, provides that trial shall be by jury on the application of a party where the court is satisfied that there is in issue:

- a claim of fraud against the party; or
- a claim in respect of libel, slander, malicious prosecution or false imprisonment.

Unless the court is of the opinion that the trial requires any prolonged examination of documents or accounts or any scientific or local investigation which cannot conveniently be made with a jury.

= Number of jurors in England and Wales

Court	At start of trial	Minimum number	Majorities allowed	Source
<i>Crown Court</i>	<i>12</i>	<i>9</i>	<i>11-1, 10-2, 10-1, 9-1</i>	<i>Juries Act 1974, s.17</i>
<i>High Court</i>	<i>12</i>	<i>9</i>	<i>11-1, 10-2, 10-1, 9-1</i>	<i>Juries Act 1974, s.17</i>
<i>County Court</i>	<i>8</i>	<i>7</i>	<i>7-1</i>	<i>County Courts Act 1984, s.66;</i>

				<i>Juries Act 1974, s.17(2)</i>
<i>Coroner's Court</i>	<i>between 7 and 11</i>	<i>—</i>	<i>Minority no more than 2</i>	<i>Coroners Act 1988, s.8(2)(a), s.12</i>

Since 1925 a jury has been able to continue hearing a case after a member has died or been discharged. Now the trial can continue so long as the minimum number of jurors remains. The judge should press the jury for a unanimous verdict. In the Crown Court the judge must not, in any event, suggest that a majority is acceptable until after 2 hours and 10 minutes. This was originally 2 hours but it was extended to allow time for the jury to settle after retiring. Unanimous verdicts were required until the Criminal Justice Act 1967.

During the Second World War, the Administration of Justice (Emergency Provisions) Act 1939 authorized trials with only 7 jurors, except for treason or murder.

**Vocabulary of
(Chapter 2- Section 3)**

Assizes

جنايات

A

A County Court hearing

جلسة محكمة المقاطعة

Accused

المتهم

Administration of Justice

إدارة وزارة العدل

Admitted

اعترف

Adoption orders

أوامر التبني

Aforesaid

مذكور آنفاً

Allegation

إدعاء

Appellate Committee

لجنة استئنافية

Arguable points of law

نقاط قانونية تقبل النقاش

Armed forces

القوات المسلحة

Asylum

اللاجء

Autrefois

B

Be aware

كن حذراً

C

Care cases

قضايا رعاية الطفل

Central Criminal Court

المحكمة الجنائية المركزية

Circuit judges

قضاة الدائرة

Civil juries

المحلفون المدنيون

Claim in respect of libel

دعوى التشهير

Claim of fraud against
the party

الإدعاء بالتزوير في مواجهة

الطرف الآخر

Claims

مطالبات

Commenced

بدأت

Compurgation

Constitutional Reform
Act

قانون الإصلاح الدستوري

Conveniently

ملائم

Conviction

قناعة

Costs penalty

يُرتب عقوبة

County Court

محاكم المقاطعة أو الولاية

Court of Appeal

محكمة الاستئناف

Court system

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Magistrates' courts

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